

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE J W912QR25BA016_Specs-0004		PAGE OF PAGES 0004 2	
2. AMENDMENT/MODIFICATION NUMBER 0004		3. EFFECTIVE DATE 15 AUG 2025		4. REQUISITION/PURCHASE REQUISITION NUMBER		5. PROJECT NUMBER (If applicable) 504650	
6. ISSUED BY CODE W072 ENDIST LOUISVILLE KO CONTRACTING DIVISION, 600 DR MARTIN LUTHER KING JR PL LOUISVILLE, KY 40202-2230 UNITED STATES LINDSAY LAWRENCE, EMAIL: LINDSAY.B.LAWRENCE@USACE.ARMY.MIL		7. ADMINISTERED BY (If other than Item 6) CODE SCD: PAS:					
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)				(X)			
				9A. AMENDMENT OF SOLICITATION NUMBER W912QR25BA016			
				9B. DATED (SEE ITEM 11) 26 JUN 2025			
				10A. MODIFICATION OF CONTRACT/ORDER NUMBER			
				10B. DATED (SEE ITEM 13)			
CODE		FACILITY CODE					

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☒ is extended. ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:
 (a) By completing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted;
 or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE
 RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER.
 If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic
 communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)
 SEE SECTION G - CONTRACT ADMINISTRATION DATA

**13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS.
IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.**

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)
 SEE SUMMARY OF CHANGES

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)	
15B. CONTRACTOR/OFFEROR	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA	16C. DATE SIGNED
(Signature of person authorized to sign)		(Signature of Contracting Officer)	

SECTION SF 30 BLOCK 14 CONTINUATION PAGE**SUMMARY OF CHANGES****Block 14 (Description of Amendment/Modification):**

Solicitation W912QR25BA016 for the Design /Bid/Build for the Addition/Alteration of Building 600 for KC-46 Flight Simulator at March ARB, CA is hereby amended as follows:

- a) The Proposal Due Date has been extended from 1:00 ET 20 August 2025 to 1:00 ET 28 August 2025.
- b) The following SPECIFICATION SECTIONS have been revised and replaced in their entirety:

KC-46A B600 Flight Simulator (PN PDPG 221013):

01 50 00 TEMPORARY CONSTRUCTION FACILITIES AND CONTROLS
Paragraph 3.2.2 SANITATION & Paragraph 3.4.1 ADMINISTRATIVE FIELD OFFICES
have been modified.

01 57 19.00 06 TEMPORARY ENVIRONMENTAL CONTROLS AND PERMITS
Paragraph 3.7.6 MERCURY MATERIALS, Paragraph 3.12 CONTROL AND
MANAGEMENT OF POLYCHLORINATED BIPHENYLS (PCBS), Paragraph
4.2.5.2.1 ACM & Paragraph 4.2.5.2.2 LEAD BASED PAINT have been modified.

- c) The following PLAN SHEETS have been added in their entirety:

A530 SECTION DETAILS
Detail H1 - Mineral wool insulation removed from joints and flutes on roof decking.

A512 ROOF DETAILS
Detail A1- Mineral wool insulation removed from joints and flutes on roof decking.
Detail A11-Mineral wool insulation removed from joints and flutes on roof decking.

- d) All other terms and conditions remain unchanged.

Section 00 00 00 - Procurement and Contracting Requirements

The following changes have been made:

INFORMATION	FROM	TO
Response Due Date	20 Aug 2025	28 Aug 2025

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SECTION 01 50 00

TEMPORARY CONSTRUCTION FACILITIES AND CONTROLS

11/20, CHG 1: 08/21

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PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

U.S. ARMY CORPS OF ENGINEERS (USACE)

EM 385-1-1 (2024) Safety and Occupational Health
(SOH) requirements

1.2 SUBMITTALS

Government approval is required for submittals with a "G" or "S" classification. Submittals not having a "G" or "S" classification are for Contractor Quality Control approval. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals

Contractor Computer Cybersecurity Compliance Statements; G

Contractor Temporary Network Cybersecurity Compliance Statements; G

SD-03 Product Data

Backflow Preventers; G

1.3 CONSTRUCTION SITE PLAN

Prior to the start of work, submit for Government approval a site plan showing the locations and dimensions of temporary facilities (including layouts and details, equipment and material storage area (onsite and offsite), and access and haul routes, avenues of ingress/egress to the fenced area and details of the fence installation. Identify any areas which may have to be graveled to prevent the tracking of mud. Indicate if the use of a supplemental or other staging area is desired. Show locations of safety and construction fences, site trailers, construction entrances, trash dumpsters, temporary sanitary facilities, and worker parking areas.

1.4 BACKFLOW PREVENTERS CERTIFICATE

1.4.1 Backflow Tester Certificate

Prior to testing, submit to the Contracting Officer certification issued by the State or local regulatory agency attesting that the backflow tester has successfully completed a certification course sponsored by the regulatory agency. Tester must not be affiliated with a company participating in other phases of this Contract.

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1.4.2 Backflow Prevention Training Certificate

Submit a certificate recognized by the State or local authority that states the Contractor has completed at least 10 hours of training in backflow preventer installations. The certificate must be current.

1.5 DOD CONDITION OF READINESS (COR)

DOD will set the Condition of Readiness (COR) based on the weather forecast for sustained winds 50 knots (58 mph) or greater. Contact the Contracting Officer for the current COR setting.

Monitor weather conditions a minimum of twice a day and take appropriate actions according to the approved Emergency Plan in the accepted Accident Prevention Plan, EM 385-1-1 Section 01 Emergency Planning and the instructions below.

Unless otherwise directed by the Contracting Officer, comply with:

- a. Condition FOUR (Sustained winds of 58 mph or greater expected within 72 hours): Normal daily job site cleanup and good housekeeping practices. Collect and store in piles or containers scrap lumber, waste material, and rubbish for removal and disposal at the close of each work day. Maintain the construction site including storage areas, free of accumulation of debris. Stack form lumber in neat piles less than 3.3 feet high. Remove all debris, trash, or objects that could become missile hazards. Review requirements pertaining to "Condition THREE" and continue action as necessary to attain "Condition FOUR" readiness. Contact Contracting Officer for weather and COR updates and completion of required actions.
- b. Condition THREE (Sustained winds of 58 mph or greater expected within 48 hours): Maintain "Condition FOUR" requirements and commence securing operations necessary for "Condition ONE" which cannot be completed within 18 hours. Cease all routine activities which might interfere with securing operations. Commence securing and stow all gear and portable equipment. Make preparations for securing buildings. Reinforce or remove formwork and scaffolding. Secure machinery, tools, equipment, materials, or remove from the job site. Expend every effort to clear all missile hazards and loose equipment from general base areas. Contact Contracting Officer for weather and COR updates and completion of required actions. Review requirements pertaining to "Condition TWO" and continue action as necessary to attain "Condition THREE" readiness.
- c. Condition TWO (Sustained winds of 58 mph or greater expected within 24 hours): Secure the job site, and leave Government premises.
- d. Condition ONE (Sustained winds of 58 mph or greater expected within 12 hours): Contractor access to the job site and Government premises is prohibited.

1.6 CYBERSECURITY DURING CONSTRUCTION

Meet the following requirements throughout the construction process.

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1.6.1 Contractor Computer Equipment

Contractor owned computers may be used for construction. When used, contractor computers must meet the following requirements:

1.6.1.1 Operating System

The operating system must be an operating system currently supported by the manufacturer of the operating system. The operating system must be current on security patches and operating system manufacturer required updates.

1.6.1.2 Anti-Malware Software

The computer must run anti-malware software from a reputable software manufacturer. Anti-malware software must be a version currently supported by the software manufacturer, must be current on all patches and updates, and must use the latest definitions file. All computers used on this project must be scanned using the installed software at least once per day.

1.6.1.3 Passwords and Passphrases

The passwords and passphrases for all computers must be changed from their default values. Passwords must be a minimum of eight characters with a minimum of one uppercase letter, one lowercase letter, one number and one special character.

1.6.1.4 Contractor Computer Cybersecurity Compliance Statements

Provide a single submittal containing completed Contractor Computer Cybersecurity Compliance Statements for each company using contractor owned computers. Contractor Computer Cybersecurity Compliance Statements must use the template published at <http://www.wbdg.org/ffc/dod/unified-facilities-guide-specifications-ufgs/forms-graphics-tables>. Each Statement must be signed by a cybersecurity representative for the relevant company.

1.6.2 Temporary IP Networks

Temporary contractor-installed IP networks may be used during construction. When used, temporary contractor-installed IP networks must meet the following requirements:

1.6.2.1 Network Boundaries and Connections

The network must not extend outside the project site and must not connect to any IP network other than IP networks provided under this project or Government furnished IP networks provided for this purpose. Any and all network access from outside the project site is prohibited.

1.6.3 Government Access to Network

Government personnel must be allowed to have complete and immediate access to the network at any time in order to verify compliance with this specification.

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1.6.4 Temporary Wireless IP Networks

In addition to the other requirements on temporary IP networks, temporary wireless IP (WiFi) networks must not interfere with existing wireless network and must use WPA2 security. Network names (SSID) for wireless networks must be changed from their default values.

1.6.5 Passwords and Passphrases

The passwords and passphrases for all network devices and network access must be changed from their default values. Passwords must be a minimum 8 characters with a minimum of one uppercase letter, one lowercase letter, one number and one special character.

1.6.6 Contractor Temporary Network Cybersecurity Compliance Statements

Provide a single submittal containing completed Contractor Temporary Network Cybersecurity Compliance Statements for each company implementing a temporary IP network. Contractor Temporary Network Cybersecurity Compliance Statements must use the template published at <http://www.wbdg.org/fffc/dod/unified-facilities-guide-specifications-ufgs/forms-graphics-tables>. Each Statement must be signed by a cybersecurity representative for the relevant company. If no temporary IP networks will be used, provide a single copy of the Statement indicating this.

PART 2 PRODUCTS

2.1 TEMPORARY SIGNAGE

2.1.1 Bulletin Board

Prior to the commencement of work activities, provide a clear weatherproof covered bulletin board not less than 36 by 48 inches in size for displaying the Equal Employment Opportunity poster, a copy of the wage decision contained in the Contract, Wage Rate Information poster, Safety and Health Information as required by EM 385-1-1 Section 01 and other information approved by the Contracting Officer. Coordinate requirements herein with Section 01 35 26.00 06 GOVERNMENTAL SAFETY REQUIREMENTS. Locate the bulletin board at the project site in a conspicuous place easily accessible to all employees, and in location as approved by the Contracting Officer.

2.1.2 Project Identification Signs

The requirements for the signs, their content, and location are as specified in Section 00 80 00.00 06 SPECIAL PROVISIONS. Erect signs within 15 days after receipt of the notice to proceed. Correct the data required by the safety sign daily, with light colored metallic or non-metallic numerals.

2.1.3 Warning Signs

Post temporary signs, tags, and labels to give workers and the public adequate warning and caution of construction hazards according to the EM 385-1-1 Section 04. Attach signs to the perimeter fencing every 150 feet warning the public of the presence of construction hazards. Signs must require unauthorized persons to keep out of the construction site. Correct the data required by safety signs daily. Post signs at all points of entry designating the construction site as a hard hat area.

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2.2 TEMPORARY TRAFFIC CONTROL

2.2.1 Barricades

Erect and maintain temporary barricades to limit public access to hazardous areas. Barricades are required whenever safe public access to paved areas such as roads, parking areas or sidewalks is prevented by construction activities or as otherwise necessary to ensure the safety of both pedestrian and vehicular traffic. Securely place barricades clearly visible with adequate illumination to provide sufficient visual warning of the hazard during both day and night.

2.3 FENCING

Provide fencing along the construction site and at all open excavations and tunnels to control access by unauthorized personnel. Safety fencing must be highly visible to be seen by pedestrians and vehicular traffic. All fencing must meet the requirements of EM 385-1-1. Remove the fence upon completion and acceptance of the work.

2.3.1 Polyethylene Mesh Safety Fencing

Temporary safety fencing must be a high visibility orange colored, high density polyethylene grid, a minimum of 48 inches high and maximum mesh size of 2 inches. Fencing must extend from the grade to a minimum of 48 inches above the grade and be tightly secured to T-posts spaced as necessary to maintain a rigid and taut fence. Fencing must remain rigid and taut with a minimum of 200 pounds of force exerted on it from any direction with less than 4 inches of deflection.

2.3.2 Chain Link Panel Fencing

Temporary panel fencing must be galvanized steel chain link panels 6 feet high. Multiple fencing panels may be linked together at the bases to form long spans as needed. Each panel base must be weighted down using sand bags or other suitable materials in order for the fencing to withstand anticipated winds while remaining upright. Fencing must remain rigid and taut with a minimum of 200 pounds of force exerted on it from any direction with less than 4 inches of deflection.

PART 3 EXECUTION

3.1 EMPLOYEE PARKING

Construction Contract employees must park privately owned vehicles in an area designated by the Contracting Officer. Employee parking must not interfere with existing and established parking requirements of the Government installation.

3.2 AVAILABILITY AND USE OF UTILITY SERVICES

3.2.1 Temporary Utilities

Provide temporary utilities required for construction. Materials may be new or used, must be adequate for the required usage, not create unsafe conditions, and not violate applicable codes and standards.

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3.2.2 Sanitation

Provide and maintain within the construction area minimum field-type sanitary facilities in accordance with EM 385-1-1 Section 02. Locate the facilities behind the construction fence or out of the public view. Clean units and empty wastes at least once a week or more frequently into a municipal, district, or station sanitary sewage system, or remove waste to a commercial facility. Obtain approval from the system owner prior to discharge into a municipal, district, or commercial sanitary sewer system. Penalties or fines associated with improper discharge will be the responsibility of the Contractor. Coordinate with the Contracting Officer and follow station regulations and procedures when discharging into the station sanitary sewer system. Maintain these conveniences at all times. Include provisions for pest control and elimination of odors. Government toilet facilities will not be available to Contractor's personnel.
*****Amendment 0004

3.2.3 Telephone

Make arrangements and pay all costs for telephone facilities desired.

3.2.4 Fire Protection

Provide temporary fire protection equipment for the protection of personnel and property during construction. Remove debris and flammable materials daily to minimize potential hazards.

3.3 BACKFLOW PREVENTERS

Provide an approved reduced pressure backflow prevention assembly at each location where the Contractor taps into the Government potable water supply.

Contractor is to inspect the existing facility to determine that a domestic backflow preventer is on the main water line entering the facility and working properly. If no backflow preventer is found, provide an approved backflow prevention assembly. Perform backflow preventer tests using test equipment, procedures, and certification forms conforming to those outlined in the latest edition of the Manual of Cross-Connection Control published by the FCCCHR Manual. After installation, Water Utilities will test and certify backflow preventer.

3.4 CONTRACTOR'S TEMPORARY FACILITIES

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3.4.1 Administrative Field Offices

Provide and maintain administrative field office facilities within the construction area. Coordinate location with Contracting Officer. Contractor is responsible for security of their property.

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3.4.2 Storage Area

Do not place or store trailers, materials, or equipment outside unless such trailers, materials, or equipment are assigned a separate and distinct storage area by the Contracting Officer away from the vicinity of the construction site but within the installation boundaries. Trailers, equipment, or materials must not be open to public view with the exception of those items which are in support of ongoing work on the current day. Do not stockpile materials outside in preparation for the next day's work.

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3.4.3 Weather Protection of Temporary Facilities and Stored Materials

Take necessary precautions to ensure that roof openings and other critical openings in the building are monitored carefully. Take immediate actions required to seal off such openings when rain or other detrimental weather is imminent, and at the end of each workday. Ensure that the openings are completely sealed off to protect materials and equipment in the building from damage.

3.4.3.1 Building and Site Storm Protection

When a warning of gale force winds is issued, take precautions to minimize danger to persons, and protect the work and nearby Government property. Precautions must include, but are not limited to, closing openings; removing loose materials, tools and equipment from exposed locations; and removing or securing scaffolding and other temporary work. Close openings in the work when storms of lesser intensity pose a threat to the work or any nearby Government property.

3.5 GOVERNMENT FIELD OFFICE

3.5.1 Resident Engineer's Office

Provide the Government Resident Engineer with an office, approximately 200 square feet in floor area, located where directed and providing space heat, air conditioning unit, electric light and power, and toilet facilities consisting of one lavatory and one water closet complete with connections to water and sewer mains. Provide a mail slot in the door or a lockable mail box mounted on the surface of the door. Include a 4 by 8 foot plan table, computer work space a standard size office desk and chair, and telephone. At completion of the project, the office will remain the property of the Contractor and be removed from the site. Utilities must be connected and disconnected in accordance with local codes and to the satisfaction of the Contracting Officer. Compliance with safety and appearance requirements for temporary facilities stated in previous paragraphs is required.

3.5.2 Trailer-Type Mobile Office

The option is available to, furnish and maintain a trailer-type mobile office acceptable to the Contracting Officer to meet the requirements of the minimum facilities specified above. Securely anchor the trailer to the ground at all four corners to guard against movement during high winds. Coordinate requirements for proper anchoring with EM 385-1-1 Section 04.

3.6 TEMPORARY PROJECT SAFETY FENCING

As soon as practicable, but not later than 15 days after the date established for commencement of work, furnish and erect temporary project safety fencing at the work site. Maintain the safety fencing during the life of the Contract and, upon completion and acceptance of the work, remove from the work site.

3.7 DUMPSTERS

Equip dumpsters with a secure cover and paint the standard installation color. Keep dumpster closed, except when being loaded with trash and debris. Locate dumpsters behind the construction fence or out of the

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public view. Empty site dumpsters at least once a week, or as needed to keep the site free of debris and trash. If necessary, provide 55 gallon trash containers painted the darker installation color to collect debris in the construction site area. For large demolitions, large dumpsters without lids are acceptable, but must not have debris higher than the sides before emptying.

3.8 CLEANUP

Remove construction debris, waste materials, packaging material and the like from the work site daily. Any dirt or mud which is tracked onto paved or surfaced roadways must be cleaned away. Store all salvageable materials resulting from demolition activities within the fenced area described above or at the supplemental storage area. Neatly stack stored materials not in trailers, whether new or salvaged.

3.9 RESTORATION OF STORAGE AREA

Upon completion of the project remove the bulletin board, signs, barricades, haul roads, and all other temporary products from the site. After removal of trailers, materials, and equipment from within the fenced area, remove the fence. Restore areas used during the performance of the Contract to the original or better condition.

-- End of Section --

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SECTION 01 57 19.00 06

TEMPORARY ENVIRONMENTAL CONTROLS AND PERMITS

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PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

ASTM INTERNATIONAL (ASTM)

ASTM E1527-21	(2021) Standard Practice for Environmental Site Assessments: Phase I Environmental Site Assessment Process
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CALIFORNIA CODE OF REGULATIONS (CCR)

22 CCR 66261.24	Characteristics of Toxicity
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U.S. ENVIRONMENTAL PROTECTION AGENCY (EPA)

EPA SW-846	(Third Edition; Update IV) Test Methods for Evaluating Solid Waste: Physical/Chemical Methods
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U.S. ARMY (DA)

AR 200-1	Army Regulation (AR) 200-1 - Environmental Protection and Enhancement
AR 200-2	Army Regulation (AR) 200-2 - Environmental Analysis of Army Actions
AR 200-3	Army Regulation (AR) 200-3 - Natural Resources - Land, Forest, and Wildlife Management

U.S. ARMY CORPS OF ENGINEERS (USACE)

EM 385-1-1	(2024) Safety and Occupational Health (SOH) requirements
ER 200-2-2	(1988) Environmental Quality - Procedures for Implementing NEPA
WETLANDS DELINEATION MANUAL	(1987) Corps of Engineers Wetlands Delineation Manual
Wetland Supplement	Regional Supplement to the Corps of Engineers Wetland Delineation Manual; Midwest Region (Version 2.0) April 2010 ERDC/R; TR-10-16

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U.S. NATIONAL ARCHIVES AND RECORDS ADMINISTRATION (NARA)

29 CFR 1910	Occupational Safety and Health Standards
29 CFR 1910.120	Hazardous Waste Operations and Emergency Response
29 CFR 1915	Confined and Enclosed Spaces and Other Dangerous Atmospheres in Shipyard Employment
29 CFR 1926	Safety and Health Regulations for Construction
29 CFR 1926.1101	Asbestos
29 CFR 1926.62	Lead
40 CFR 112	Oil Pollution Prevention
40 CFR 241	Guidelines for Disposal of Solid Waste
40 CFR 243	Guidelines for the Storage and Collection of Residential, Commercial, and Institutional Solid Waste
40 CFR 258	Subtitle D Landfill Requirements
40 CFR 260	Hazardous Waste Management System: General
40 CFR 261	Identification and Listing of Hazardous Waste
40 CFR 261.7	Residues of Hazardous Waste in Empty Containers
40 CFR 262	Standards Applicable to Generators of Hazardous Waste
40 CFR 262.31	Standards Applicable to Generators of Hazardous Waste-Labeling
40 CFR 262.34	Standards Applicable to Generators of Hazardous Waste-Accumulation Time
40 CFR 263	Standards Applicable to Transporters of Hazardous Waste
40 CFR 264	Standards for Owners and Operators of Hazardous Waste Treatment, Storage, and Disposal Facilities
40 CFR 265	Interim Status Standards for Owners and Operators of Hazardous Waste Treatment, Storage, and Disposal Facilities
40 CFR 266	Standards for the Management of Specific Hazardous Wastes and Specific Types of

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	Hazardous Waste Management Facilities
40 CFR 268	Land Disposal Restrictions
40 CFR 273	Standards for Universal Waste Management
40 CFR 273.2	Standards for Universal Waste Management - Batteries
40 CFR 273.4	Standards for Universal Waste Management - Mercury Containing Equipment
40 CFR 273.5	Standards for Universal Waste Management - Lamps
40 CFR 279	Standards for the Management of Used Oil
40 CFR 300	National Oil and Hazardous Substances Pollution Contingency Plan
40 CFR 300.125	National Oil and Hazardous Substances Pollution Contingency Plan - Notification and Communications
40 CFR 355	Emergency Planning and Notification
40 CFR 372-SUBPART D	Specific Toxic Chemical Listings
40 CFR 403	General Pretreatment Regulations for Existing and New Sources of Pollution
40 CFR 50	National Primary and Secondary Ambient Air Quality Standards
40 CFR 60	Standards of Performance for New Stationary Sources
40 CFR 61	National Emission Standards for Hazardous Air Pollutants
40 CFR 63	National Emission Standards for Hazardous Air Pollutants for Source Categories
40 CFR 64	Compliance Assurance Monitoring
40 CFR 745	Lead-Based Paint Poisoning Prevention in Certain Residential Structures
40 CFR 761	Polychlorinated Biphenyls (PCBs) Manufacturing, Processing, Distribution in Commerce, and Use Prohibitions
40 CFR 82	Protection of Stratospheric Ozone
49 CFR 171	General Information, Regulations, and Definitions
49 CFR 172	Hazardous Materials Table, Special Provisions, Hazardous Materials

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Communications, Emergency Response
Information, and Training Requirements

49 CFR 172.101

Hazardous Material Regulation-Purpose and
Use of Hazardous Material Table

49 CFR 173

Shippers - General Requirements for
Shipments and Packagings

49 CFR 178

Specifications for Packagings

1.2 DEFINITIONS

1.2.1 Class I and II Ozone Depleting Substance (ODS)

Class I ODS is defined in Section 602(a) of The Clean Air Act. A list of Class I ODS can be found on the EPA website at the following weblink.
<http://www.epa.gov/ozone/science/ods/classone.html>.

Class II ODS is defined in Section 602(s) of The Clean Air Act. A list of Class II ODS can be found on the EPA website at the following weblink.
<http://www.epa.gov/ozone/science/ods/classtwo.html>.

1.2.2 Contractor Generated Hazardous Waste

Contractor generated hazardous waste is materials that, if abandoned or disposed of, may meet the definition of a hazardous waste. These waste streams would typically consist of material brought on site by the Contractor to execute work, but are not fully consumed during the course of construction. Examples include, but are not limited to, excess paint thinners (i.e., methyl ethyl ketone, toluene), waste thinners, excess paints, excess solvents, waste solvents, excess pesticides, and contaminated pesticide equipment rinse water.

1.2.3 Electronics Waste

Electronics waste is discarded electronic devices intended for salvage, recycling, or disposal.

1.2.4 Environmental Pollution and Damage

Environmental pollution and damage is the presence of chemical, physical, or biological elements or agents which adversely affect human health or welfare; unfavorably alter ecological balances of importance to human life; affect other species of importance to humankind; or degrade the environment aesthetically, culturally or historically.

1.2.5 Environmental Protection

Environmental protection is the prevention/control of pollution and habitat disruption that may occur to the environment during construction. The control of environmental pollution and damage requires consideration of land, water, and air; biological and cultural resources; and includes management of visual aesthetics; noise; solid, chemical, gaseous, and liquid waste; radiant energy and radioactive material as well as other pollutants.

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1.2.6 Hazardous Debris

As defined in paragraph SOLID WASTE, debris that contains listed hazardous waste (either on the debris surface, or in its interstices, such as pore structure) in accordance with 40 CFR 261. Hazardous debris also includes debris that exhibits a characteristic of hazardous waste in accordance with 40 CFR 261.

1.2.7 Hazardous Materials

Hazardous materials as defined in 49 CFR 171 and listed in 49 CFR 172.

Hazardous material is any material that: Is regulated as a hazardous material in accordance with 49 CFR 173; or requires a Safety Data Sheet (SDS) in accordance with 29 CFR 1910.120; or during end use, treatment, handling, packaging, storage, transportation, or disposal meets or has components that meet or have potential to meet the definition of a hazardous waste as defined by 40 CFR 261 Subparts A, B, C, or D. Designation of a material by this definition, when separately regulated or controlled by other sections or directives, does not eliminate the need for adherence to that hazard-specific guidance which takes precedence over this section for "control" purposes. Such material includes ammunition, weapons, explosive actuated devices, propellants, pyrotechnics, chemical and biological warfare materials, medical and pharmaceutical supplies, medical waste and infectious materials, bulk fuels, radioactive materials, and other materials such as asbestos, mercury, and polychlorinated biphenyls (PCBs).

1.2.8 Hazardous Waste

Hazardous Waste is any material that meets the definition of a solid waste and exhibit a hazardous characteristic (ignitability, corrosivity, reactivity, or toxicity) as specified in 40 CFR 261, Subpart C, or contains a listed hazardous waste as identified in 40 CFR 261, Subpart D. In addition, per California 22 CCR 66261.24, Characteristics of Toxicity, materials containing 1.0 percent or more of friable asbestos are hazardous waste.

1.2.9 Installation Pest Management Coordinator

Not Used.

1.2.10 Land Application

Land Application means spreading or spraying discharge water at a rate that allows the water to percolate into the soil. No sheeting action, soil erosion, discharge into storm sewers, discharge into defined drainage areas, or discharge into the "waters of the United States" must occur. Comply with federal, state, and local laws and regulations.

1.2.11 Municipal Separate Storm Sewer System (MS4) Permit

MS4 permits are those held by installations to obtain NPDES permit coverage for their stormwater discharges.

1.2.12 National Pollutant Discharge Elimination System (NPDES)

The NPDES permit program controls water pollution by regulating point sources that discharge pollutants into waters of the United States.

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1.2.13 Oily Waste

Oily waste are those materials that are, or were, mixed with Petroleum, Oils, and Lubricants (POLs) and have become separated from that POLs. Oily wastes also means materials, including wastewaters, centrifuge solids, filter residues or sludges, bottom sediments, tank bottoms, and sorbents which have come into contact with and have been contaminated by, POLs and may be appropriately tested and discarded in a manner which is in compliance with other state and local requirements.

This definition includes materials such as oily rags, "kitty litter" sorbent clay and organic sorbent material. These materials may be land filled provided that: It is not prohibited in other state regulations or local ordinances; the amount generated is "de minimus" (a small amount); it is the result of minor leaks or spills resulting from normal process operations; and free-flowing oil has been removed to the practicable extent possible. Large quantities of this material, generated as a result of a major spill or in lieu of proper maintenance of the processing equipment, are a solid waste. As a solid waste, perform a hazardous waste determination prior to disposal. As this can be an expensive process, it is recommended that this type of waste be minimized through good housekeeping practices and employee education.

1.2.14 Pesticide

Not Used.

1.2.15 Pesticide Treatment Plan

Not Used.

1.2.16 Pests

Not Used.

1.2.17 Project Pesticide Coordinator

Not Used.

1.2.18 Regulated Waste

Regulated waste are solid wastes that have specific additional federal, state, or local controls for handling, storage, or disposal.

1.2.19 Sediment

Sediment is soil and other debris that have eroded and have been transported by runoff water or wind.

1.2.20 Solid Waste

Solid waste is a solid, liquid, semi-solid or contained gaseous waste. A solid waste can be a hazardous waste, non-hazardous waste, or non-Resource Conservation and Recovery Act (RCRA) regulated waste. Types of solid waste typically generated at construction sites may include:

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1.2.20.1 Debris

Debris is non-hazardous solid material generated during the construction, demolition, or renovation of a structure that exceeds 2.5-inch particle size that is: A manufactured object; plant or animal matter; or natural geologic material (for example, cobbles and boulders), broken or removed concrete, masonry, and rock asphalt paving; ceramics; roofing paper and shingles. Inert materials may not be reinforced with or contain ferrous wire, rods, accessories and weldments. A mixture of debris and other material such as soil or sludge is also subject to regulation as debris if the mixture is comprised primarily of debris by volume, based on visual inspection.

1.2.20.2 Green Waste

Green waste is the vegetative matter from landscaping, land clearing and grubbing, including, but not limited to, grass, bushes, scrubs, small trees and saplings, tree stumps and plant roots. Marketable trees, grasses and plants that are indicated to remain, be re-located, or be re-used are not included.

1.2.20.3 Material not regulated as solid waste

Material not regulated as solid waste is nuclear source or byproduct materials regulated under the Federal Atomic Energy Act of 1954 as amended; suspended or dissolved materials in domestic sewage effluent or irrigation return flows, or other regulated point source discharges; regulated air emissions; and fluids or wastes associated with natural gas or crude oil exploration or production.

1.2.20.4 Non-Hazardous Waste

Non-hazardous waste is waste that is excluded from, or does not meet, hazardous waste criteria in accordance with 40 CFR 263, or California 22 CCR 66261.24.

1.2.20.5 Recyclables

Recyclables are materials, equipment and assemblies such as doors, windows, door and window frames, plumbing fixtures, glazing and mirrors that are recovered and sold as recyclable, wiring, insulated/non-insulated copper wire cable, wire rope, and structural components. It also includes commercial-grade refrigeration equipment with Freon removed, household appliances where the basic material content is metal, clean polyethylene terephthalate bottles, cooking oil, used fuel oil, textiles, high-grade paper products and corrugated cardboard, stackable pallets in good condition, clean crating material, and clean rubber/vehicle tires. Metal meeting the definition of lead contaminated or lead based paint contaminated may not be included as recyclable if sold to a scrap metal company. Paint cans that meet the definition of empty containers in accordance with 40 CFR 261.7 may be included as recyclable if sold to a scrap metal company.

1.2.20.6 Surplus Soil

Surplus soil is existing soil that is in excess of what is required for this work, including aggregates intended, but not used, for on-site mixing of concrete, mortars, and paving. Contaminated soil meeting the definition of hazardous material or hazardous waste is not included and

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must be managed in accordance with paragraph HAZARDOUS MATERIAL MANAGEMENT.

1.2.20.7 Scrap Metal

This includes scrap and excess ferrous and non-ferrous metals such as reinforcing steel, structural shapes, pipe, and wire that are recovered or collected and disposed of as scrap. Scrap metal meeting the definition of hazardous material or hazardous waste is not included.

1.2.20.8 Wood

Wood is dimension and non-dimension lumber, plywood, chipboard, hardboard. Treated or painted wood that meets the definition of lead contaminated or lead based contaminated paint is not included. Treated wood includes, but is not limited to, lumber, utility poles, crossties, and other wood products with chemical treatment.

1.2.21 Surface Discharge

Surface discharge means discharge of water into drainage ditches, storm sewers, creeks or "waters of the United States". Surface discharges are discrete, identifiable sources and require a permit from the governing agency. Comply with federal, state, and local laws and regulations.

1.2.22 Wastewater

Wastewater is the used water and solids from a community that flow to a treatment plant.

1.2.22.1 Stormwater

Stormwater is any precipitation in an urban or suburban area that does not evaporate or soak into the ground, but instead collects and flows into storm drains, rivers, and streams.

1.2.23 Waters of the United States

Waters of the United States means Federally jurisdictional waters, including wetlands, that are subject to regulation under Section 404 of the Clean Water Act or navigable waters, as defined under the Rivers and Harbors Act.

1.2.24 Wetlands

Wetlands are those areas that are inundated or saturated by surface or groundwater at a frequency and duration sufficient to support, and that under normal circumstances do support, a prevalence of vegetation typically adapted for life in saturated soil conditions. Official determination of whether or not an area is classified as a wetland must be done in accordance with the WETLANDS DELINEATION MANUAL and Wetland Supplement.

1.2.25 Universal Waste

The universal waste regulations streamline collection requirements for certain hazardous wastes in the following categories: Batteries, pesticides, mercury-containing equipment (for example, thermostats), and lamps (for example, fluorescent bulbs). The rule is designed to reduce hazardous waste in the municipal solid waste (MSW) stream by making it

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easier for universal waste handlers to collect these items and send them for recycling or proper disposal. These regulations can be found at 40 CFR 273.

1.3 SUBMITTALS

Government approval is required for submittals with a "G" designation; submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. Submit the following in accordance with LRL Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals

- Preconstruction Survey
- Solid Waste Management Permit; G
- Regulatory Notifications; G
- Environmental Protection Plan; G
- Dirt and Dust Control Plan; G
- Employee Training Records; G
- Environmental Manager Qualifications; G
- Stormwater Pollution Prevention Plan (Swppp); G

SD-06 Test Reports

- Laboratory Analysis
- Inspection Reports
- Solid Waste Management Report; G

SD-07 Certificates

- Employee Training Records; G

SD-11 Closeout Submittals

- Stormwater Pollution Prevention Plan Compliance Notebook; G
- Stormwater Notice of Termination (for NPDES coverage under the general permit for construction activities); G
- Waste Determination Documentation; G
- Disposal Documentation for Hazardous and Regulated Waste; G
- Assembled Employee Training Records; G
- Solid Waste Management Permit; G
- Solid Waste Management Report; G

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Hazardous Waste/Debris Management; G

Regulatory Notifications; G

Sales Documentation; G

Contractor Certification

As-Built Topographic Survey

1.4 ENVIRONMENTAL PROTECTION REQUIREMENTS

Provide and maintain, during the life of the contract, environmental protection as defined. Plan for and provide environmental protective measures to control pollution that develops during construction practice. Plan for and provide environmental protective measures required to correct conditions that develop during the construction of permanent or temporary environmental features associated with the project. Protect the environmental resources within the project boundaries and those affected outside the limits of permanent work during the entire duration of this Contract. Comply with federal, state, and local regulations pertaining to the environment, including water, air, solid waste, hazardous waste and substances, oily substances, and noise pollution.

Tests and procedures assessing whether construction operations comply with Applicable Environmental Laws may be required. Analytical work must be performed by qualified laboratories; and where required by law, the laboratories must be certified.

1.4.1 Conformance with the Environmental Management System

Perform work under this contract consistent with the policy and objectives identified in the installation's Environmental Management System (EMS). Perform work in a manner that conforms to objectives and targets of the environmental programs and operational controls identified by the EMS. Support Government personnel when environmental compliance and EMS audits are conducted by escorting auditors at the Project site, answering questions, and providing proof of records being maintained. Provide monitoring and measurement information as necessary to address environmental performance relative to environmental, energy, and transportation management goals. In the event an EMS nonconformance or environmental noncompliance associated with the contracted services, tasks, or actions occurs, take corrective and preventative actions. In addition, employees must be aware of their roles and responsibilities under the installation EMS and of how these EMS roles and responsibilities affect work performed under the contract.

Coordinate with the installation's EMS coordinator to identify training needs associated with environmental aspects and the EMS, and arrange training or take other action to meet these needs. Provide training documentation to the Contracting Officer. The Installation Environmental Office will retain associated environmental compliance records. Make EMS Awareness training completion certificates available to Government auditors during EMS audits and include the certificates in the Employee Training Records. See paragraph EMPLOYEE TRAINING RECORDS.

1.5 SPECIAL ENVIRONMENTAL REQUIREMENTS

Not Used.

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1.6 QUALITY ASSURANCE

1.6.1 Preconstruction Survey and Protection of Features

This paragraph supplements the Contract FAR 52.236-9 - Protection of Existing Vegetation, Structures, Equipment, Utilities and Improvements. Prior to start of any onsite construction activities, perform a Preconstruction Survey of the project site with the Contracting Officer, and take photographs showing existing environmental conditions in and adjacent to the site. Submit a report for the record. Include in the report a plan describing the features requiring protection under the provisions of the Contract Clauses, which are not specifically identified on the drawings as environmental features requiring protection along with the condition of trees, shrubs and grassed areas immediately adjacent to the site of work and adjacent to the Contractor's assigned storage area and access route(s), as applicable. The Contractor and the Contracting Officer will sign this survey report upon mutual agreement regarding its accuracy and completeness. Protect those environmental features included in the survey report and any indicated on the drawings, regardless of interference that their preservation may cause to the work under the Contract.

1.6.2 Regulatory Notifications

Provide regulatory notification requirements in accordance with federal, state and local regulations. In cases where the Government will also provide public notification (such as stormwater permitting), coordinate with the Contracting Officer. Submit copies of regulatory notifications to the Contracting Officer within 30 days prior to commencement of work activities. Typically, regulatory notifications must be provided for the following (this listing is not all-inclusive): Demolition, renovation, NPDES defined site work, construction, removal or use of a permitted air emissions source, and remediation of controlled substances (asbestos, hazardous waste, lead paint).

1.6.3 Environmental Brief

Attend an environmental brief to be included in the preconstruction meeting. Provide the following information: Types, quantities, and use of hazardous materials that will be brought onto the installation; and types and quantities of wastes/wastewater that may be generated during the Contract. Discuss the results of the Preconstruction Survey at this time.

Prior to initiating any work on site, meet with the Contracting Officer and installation Environmental Office to discuss the proposed Environmental Protection Plan (EPP). Develop a mutual understanding relative to the details of environmental protection, including measures for protecting natural and cultural resources, required reports, required permits, permit requirements (such as mitigation measures), and other measures to be taken.

1.6.4 Environmental Manager

Appoint in writing an Environmental Manager for the project site. The Environmental Manager is directly responsible for coordinating contractor compliance with federal, state, local, and installation requirements. The Environmental Manager must ensure compliance with Hazardous Waste Program requirements (including hazardous waste handling, storage, manifesting,

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and disposal); implement the EPP; ensure environmental permits are obtained, maintained, and closed out; ensure compliance with Stormwater Program requirements; ensure compliance with Hazardous Materials (storage, handling, and reporting) requirements; and coordinate any remediation of regulated substances (lead, asbestos, PCB transformers). This can be a collateral position; however, the person in this position must be trained to adequately accomplish the following duties: Ensure waste segregation and storage compatibility requirements are met; inspect and manage Satellite Accumulation areas; ensure only authorized personnel add wastes to containers; ensure Contractor personnel are trained in 40 CFR requirements in accordance with their position requirements; coordinate removal of waste containers; and maintain the Environmental Records binder and required documentation, including environmental permits compliance and close-out. Submit Environmental Manager Qualifications to the Contracting Officer.

1.6.5 Employee Training Records

Prepare and maintain Employee Training Records throughout the term of the contract meeting applicable 40 CFR requirements. Provide Employee Training Records in the Environmental Records Binder. Submit these Assembled Employee Training Records to the Contracting Officer at the conclusion of the project, unless otherwise directed.

Train personnel to meet state requirements. Conduct environmental protection/pollution control meetings for personnel prior to commencing construction activities. Contact additional meetings for new personnel and when site conditions change. Include in the training and meeting agenda: Methods of detecting and avoiding pollution; familiarization with statutory and contractual pollution standards; installation and care of devices, vegetative covers, and instruments required for monitoring purposes to ensure adequate and continuous environmental protection/pollution control; anticipated hazardous or toxic chemicals or wastes, and other regulated contaminants; recognition and protection of archaeological sites, artifacts, waters of the United States, and endangered species and their habitat that are known to be in the area.

1.6.6 Non-Compliance Notifications

The Contracting Officer will notify the Contractor in writing of any observed noncompliance with federal, state or local environmental laws or regulations, permits, and other elements of the Contractor's EPP. After receipt of such notice, inform the Contracting Officer of the proposed corrective action and take such action when approved by the Contracting Officer. The Contracting Officer may issue an order stopping all or part of the work until satisfactory corrective action has been taken. No time extensions will be granted or equitable adjustments allowed for any such suspensions. This is in addition to any other actions the Contracting Officer may take under the contract, or in accordance with the Federal Acquisition Regulation or Federal Law.

1.7 ENVIRONMENTAL PROTECTION PLAN

The purpose of the EPP is to present an overview of known or potential environmental issues that must be considered and addressed during construction. Incorporate construction related objectives and targets from the installation's EMS into the EPP. Include in the EPP measures for protecting natural and cultural resources, required reports, and other measures to be taken. Meet with the Contracting Officer or Contracting

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Officer Representative to discuss the EPP and develop a mutual understanding relative to the details for environmental protection including measures for protecting natural resources, required reports, and other measures to be taken. Submit the EPP within fifteen (15) days after notice to proceed and not less than ten (10) days before the preconstruction meeting. Revise the EPP throughout the project to include any reporting requirements, changes in site conditions, or contract modifications that change the project scope of work in a way that could have an environmental impact. No requirement in this section will relieve the Contractor of any applicable federal, state, and local environmental protection laws and regulations. During Construction, identify, implement, and submit for approval any additional requirements to be included in the EPP. Maintain the current version onsite.

The EPP includes, but is not limited to, the following elements:

1.7.1 General Overview and Purpose

1.7.1.1 Descriptions

A brief description of each specific plan required by environmental permit or elsewhere in this Contract such as stormwater pollution prevention plan, spill control plan, solid waste management plan, wastewater management plan, air pollution control plan, contaminant prevention plan, traffic control plan, and Non-Hazardous Solid Waste Disposal Plan.

1.7.1.2 Duties

The duties and level of authority assigned to the person(s) on the job site who oversee environmental compliance, such as who is responsible for adherence to the EPP, who is responsible for spill cleanup and training personnel on spill response procedures, who is responsible for manifesting hazardous waste to be removed from the site (if applicable), and who is responsible for training the Contractor's environmental protection personnel.

1.7.1.3 Procedures

A copy of any standard or project-specific operating procedures that will be used to effectively manage and protect the environment on the project site.

1.7.1.4 Communications

Communication and training procedures that will be used to convey environmental management requirements to Contractor employees and subcontractors.

1.7.1.5 Contact Information

Emergency contact information contact information (office phone number, cell phone number, and e-mail address).

1.7.2 General Site Information

1.7.2.1 Drawings

Drawings showing locations of proposed temporary excavations or embankments for haul roads, stream crossings, jurisdictional wetlands,

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material storage areas, structures, sanitary facilities, storm drains and conveyances, and stockpiles of excess soil.

1.7.2.2 Work Area

Work area plan showing the proposed activity in each portion of the area and identify the areas of limited use or nonuse. Include measures for marking the limits of use areas, including methods for protection of features to be preserved within authorized work areas and methods to control runoff and to contain materials on site, and a traffic control plan.

1.7.2.3 Documentation

A letter signed by an officer of the firm appointing the Environmental Manager and stating that person is responsible for managing and implementing the Environmental Program as described in this contract. Include in this letter the Environmental Manager's authority to direct the removal and replacement of non-conforming work. Per LRL Section 01 45 04.10 06, Contractor Quality Control and more specifically paragraph Construction Quality Control Organization, the Environmental Manager shall be included as part of the CQC organization.

1.7.3 Management of Natural Resources

- a. Land resources.
- b. Tree protection.
- c. Replacement of damaged landscape features.
- d. Temporary construction.
- e. Fish and wildlife resources.

1.7.4 Protection of Historical and Archaeological Resources

- a. Objectives.
- b. Methods.

1.7.5 Stormwater Management and Control

- a. Ground cover.
- b. Erodible soils.
- c. Temporary measures.
 - (1) Structural Practices.
 - (2) Temporary and permanent stabilization.
- d. Effective selection, implementation and maintenance of Best Management Practices (BMPs).

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1.7.6 Protection of the Environment from Waste Derived from Contractor Operations

Control and disposal of solid and sanitary waste. Control and disposal of hazardous waste.

If the project is located on a military installation, management procedures for hazardous waste to be generated shall be followed. The elements of those procedures will coincide with the Installation Hazardous Waste Management Plan. The Contracting Officer will provide a copy of the Installation Hazardous Waste Management Plan. For all projects, as a minimum, include the following:

- a. List of the types of hazardous wastes expected to be generated.
- b. Procedures to ensure a written waste determination is made for appropriate wastes that are to be generated.
- c. Sampling/analysis plan, including laboratory method(s) that will be used for waste determinations and copies of relevant laboratory certifications.
- d. Methods and proposed locations for hazardous waste accumulation/storage (that is, in tanks or containers).
- e. Management procedures for storage, labeling, transportation, and disposal of waste (treatment of waste is not allowed unless specifically noted).
- f. Management procedures and regulatory documentation ensuring disposal of hazardous waste complies with Land Disposal Restrictions (40 CFR 268).
- g. Management procedures for recyclable hazardous materials such as lead-acid batteries, used oil, and similar.
- h. Used oil management procedures in accordance with 40 CFR 279; Hazardous waste minimization procedures.
- i. Plans for the disposal of hazardous waste by permitted facilities; and Procedures to be employed to ensure required employee training records are maintained.

1.7.7 Prevention of Releases to the Environment

Procedures to prevent releases to the environment

Notifications in the event of a release to the environment

1.7.8 Regulatory Notification and Permits

List what notifications and permit applications must be made. Some permits require up to 180 days to obtain. Demonstrate that those permits have been obtained or applied for by including copies of applicable environmental permits. The EPP will not be approved until the permits have been obtained.

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1.7.9 Clean Air Act Compliance

1.7.9.1 Haul Route

Submit truck and material haul routes along with a Dirt and Dust Control Plan for controlling dirt, debris, and dust on Installation roadways. As a minimum, identify in the plan the subcontractor and equipment for cleaning along the haul route and measures to reduce dirt, dust, and debris from roadways.

1.7.9.2 Pollution Generating Equipment

Identify air pollution generating equipment or processes that may require federal, state, or local permits under the Clean Air Act. Determine requirements based on any current installation permits and the impacts of the project. Provide a list of all fixed or mobile equipment, machinery or operations that could generate air emissions during the project to the Installation Environmental Office (Air Program Manager).

1.7.9.3 Stationary Internal Combustion Engines

Identify portable and stationary internal combustion engines that will be supplied, used or serviced. Comply with 40 CFR 60 Subpart IIII, 40 CFR 60 Subpart JJJJ, 40 CFR 63 Subpart ZZZZ, and local regulations as applicable. At minimum, include the make, model, serial number, manufacture date, size (engine brake horsepower), and EPA emission certification status of each engine. Maintain applicable records and log hours of operation and fuel use. Logs must include reasons for operation and delineate between emergency and non-emergency operation.

1.7.9.4 Refrigerants

Identify management practices to ensure that heating, ventilation, and air conditioning (HVAC) work involving refrigerants complies with 40 CFR 82 requirements. Technicians must be certified, maintain copies of certification on site, use certified equipment and log work that requires the addition or removal of refrigerant. Any refrigerant reclaimed is the property of the Government, coordinate with the Installation Environmental Office to determine the appropriate turn in location.

1.7.9.5 Air Pollution-engineering Processes

Identify planned air pollution-generating processes and management control measures (including, but not limited to, spray painting, abrasive blasting, demolition, material handling, fugitive dust, and fugitive emissions). Log hours of operations and track quantities of materials used.

1.7.9.6 Monitoring

Not Used.

1.7.9.7 Compliant Materials

Provide the Government a list of and SDSs for all hazardous materials proposed for use on site. Materials must be compliant with all Clean Air Act regulations for emissions including solvent and volatile organic compound contents, and applicable National Emission Standards for Hazardous Air Pollutants requirements. The Government may alter or limit

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use of specific materials as needed to meet installation permit requirements for emissions.

1.8 LICENSES AND PERMITS

Obtain licenses and permits required for the construction of the project and in accordance with FAR 52.236-7 - Permits and Responsibilities. Notify the Government of all general use permitted equipment the Contractor plans to use on site. This paragraph supplements the Contractor's responsibility under FAR 52.236-7 - Permits and Responsibilities. Part 4 of this Section provides a list of typical preconstruction permits.

1.9 ENVIRONMENTAL RECORDS BINDER

Maintain on-site a separate three-ring Environmental Records Binder and submit at the completion of the project. Make separate parts within the binder that correspond to each submittal listed under paragraph CLOSEOUT SUBMITTALS in this section.

1.10 PESTICIDE DELIVERY, STORAGE, AND HANDLING

Not Used.

1.11 SOLID WASTE MANAGEMENT PERMIT

Provide the Contracting Officer with written notification of the quantity of anticipated solid waste or debris that is anticipated or estimated to be generated by construction. Include in the report the locations where various types of waste will be disposed or recycled. Include letters of acceptance from the receiving location or as applicable; submit one copy of the receiving location state and local Solid Waste Management Permit or license showing such agency's approval of the disposal plan before transporting wastes off Government property.

1.11.1 Solid Waste Management Report

Monthly, submit a solid waste disposal report to the Contracting Officer. For each waste, the report will state the classification (using the definitions provided in this section), amount, location, and name of the business receiving the solid waste.

1.12 BORROW SOILS

It is the responsibility of the Contractor to have any off site fill material certified that the fill material is suitable and meets environmental fill requirements, if applicable. The fill material shall be deemed suitable via sampling by an environmental engineering firm acceptable to the Contracting Officer's Representative (COR). This confirmation shall include obtaining and testing representative samples from the proposed borrow source. The engineering firm will submit certification of environmentally suitable material signed by a licensed professional engineer. This certification along with all proposed borrow sources, borrow materials, sampling and analysis plans and reports shall be deemed acceptable to the COR prior to transportation of borrow material to the site.

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1.13 MANAGEMENT OF BORROW MATERIAL AND EXCESS SOIL

1. Under this contract, the intent is that all excavated soils are to be reused on-site to the greatest extent practicable and economically justified and the use of borrow from off-site sources shall be avoided to the greatest extent practicable and economically justified. (If available, the Government will identify on the contract drawings disposal areas and/or borrow areas outside the construction work limits on the Government installation where excess soils may be taken. Any compaction or grading requirements will be noted on the drawings or in the specifications.)

2. If reuse of all excavated soils is not practical or economical and disposal on the Government installation is not available, then all soil removed from the project site will be disposed of at a State permitted RCRA Subtitle D disposal facility in accordance with all applicable federal, state and local laws and regulations.

3. If reuse of all excavated soils is not practical or economical and disposal on the Government installation is not available, the Contractor may place excess excavated soil material on a receiving property that has been approved by the Government. The action of placing excess soil on the receiving property shall have had the appropriate level of National Environmental Policy Act (NEPA) compliance activity performed and deemed acceptable. If the NEPA assessment has not evaluated placement of spoils off-site, then compliance with NEPA will need to be demonstrated through the preparation of a Record of Environmental Consideration (REC) or a Supplemental Environmental Assessment (EA). NEPA documents shall be prepared using an inter-disciplinary approach which will ensure the integrated use of the natural and social sciences and the environmental design arts (section 102(2)(A) of the Act). The disciplines of the preparers shall be appropriate to the scope and issues identified in the scoping process.

A written certification signed by the Contractor shall be furnished to the Government indicating the soil was placed on the approved receiving site prior to payment for this effort. The certification shall identify dates and quantities of soils placed.

4. If borrow material is required and borrow is not available from the project site or the Government installation, the Contractor shall obtain borrow material from an off-site borrow source that has been approved by the Government. The action of acquiring borrow and transporting that material to the project shall have had the appropriate level of National Environmental Policy Act (NEPA) compliance activity performed and deemed acceptable. If the NEPA assessment has not evaluated the acquisition of borrow, then compliance with NEPA will need to be demonstrated through the preparation of a Record of Environmental Consideration (REC) or a Supplemental Environmental Assessment (EA). NEPA documents shall be prepared using an inter-disciplinary approach which will ensure the integrated use of the natural and social sciences and the environmental design arts (section 102(2)(A) of the Act). The disciplines of the preparers shall be appropriate to the scope and issues identified in the scoping process.

The Supplemental EA shall meet the requirements of ASTM E1527-21 and was performed no earlier than two months prior to award of the contract and by a qualified environmental professional as defined by X2.1 of ASTM E1527-21. The findings of the Supplemental EA shall state that no indications of

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contamination were found on or adjacent to the property and that no additional investigation is warranted. A copy of the ESA report shall be furnished by the Contractor to the Government.

1.14 FACILITY HAZARDOUS WASTE GENERATOR STATUS

Meet the regulatory requirements of this generator designation for any work conducted within the boundaries of this Installation. Comply with provisions of federal, state, and local regulatory requirements applicable to this generator status regarding training and storage, handling, and disposal of construction derived wastes.

1.15 SUBCONTRACTORS

Ensure compliance with this section by subcontractors.

1.16 PAYMENT

No separate payment will be made for work covered under this section. Payment of fees associated with environmental permits, application, and/or notices obtained by the Contractor, and payment of all fines/fees for violation or non-compliance with Federal, State, Regional and local laws and regulations are the Contractor's responsibility. All costs associated with this section must be included in the contract price.

PART 2 PRODUCTS

Not Used

PART 3 EXECUTION

3.1 PROTECTION OF NATURAL RESOURCES

Minimize interference with, disturbance to, and damage to fish, wildlife, and plants, including their habitats. Prior to the commencement of activities, consult with the Installation Environmental Office, regarding rare species or sensitive habitats that need to be protected. The protection of rare, threatened, and endangered animal and plant species identified, including their habitats, is the Contractor's responsibility.

Preserve the natural resources within the project boundaries and outside the limits of permanent work. Restore to an equivalent or improved condition upon completion of work that is consistent with the requirements of the Installation Environmental Office or as otherwise specified. Confine construction activities to within the limits of the work indicated or specified.

3.1.1 Flow Ways

Do not alter water flows or otherwise significantly disturb the native habitat adjacent to the project and critical to the survival of fish and wildlife, except as specified and permitted.

3.1.2 Vegetation

Except in areas to be cleared, do not remove, cut, deface, injure, or destroy trees or shrubs without the Contracting Officer's permission. Do not fasten or attach ropes, cables, or guys to existing nearby trees for anchorages unless authorized by the Contracting Officer. Where such use

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of attached ropes, cables, or guys is authorized, the Contractor is responsible for any resultant damage.

Protect existing trees that are to remain to ensure they are not injured, bruised, defaced, or otherwise damaged by construction operations. Remove displaced rocks from uncleared areas. Coordinate with the Contracting Officer and Installation Environmental Office to determine appropriate action for trees and other landscape features scarred or damaged by equipment operations.

3.1.3 Streams

Stream crossings must allow movement of materials or equipment without violating water pollution control standards of the federal, state, and local governments. Construction of stream crossing structures must be in compliance with any required permits including, but not limited to, Clean Water Act Section 404, and Section 401 Water Quality.

The Contracting Officer's approval and appropriate permits are required before any equipment will be permitted to ford live streams. In areas where frequent crossings are required, install temporary culverts or bridges. Obtain Contracting Officer's approval prior to installation. Remove temporary culverts or bridges upon completion of work, and repair the area to its original condition unless otherwise required by the Contracting Officer.

3.2 STORMWATER

Do not discharge stormwater from construction sites to the sanitary sewer. If the water is noted or suspected of being contaminated, it may only be released to the storm drain system if the discharge is specifically permitted. Obtain authorization in advance from the Installation Environmental Office for any release of contaminated water.

3.2.1 Stormwater Pollution Prevention Plan (SWPPP)

In accordance with the National Pollutant Discharge Elimination System (NPDES) Permit, a Storm Water Pollution Prevention Plan (PPP) is required for this project. This plan shall be developed by the Contractor as a pre-construction activity and must meet the erosion and sediment control requirements for the State of California. The Plan must identify the controls that will be used and include design, inspection, and maintenance information. A site plan with the existing and proposed grading shall be included, showing the controls being utilized. The permanent stabilization practices (permanent seeding, mulching, sodding, plants, erosion control blanket, riprap, etc.,) shall be shown on the final grading plan, with temporary controls (temporary gravel construction entrance/exit, silt fences, straw bales, temporary diversions, sediment basins or traps, etc.,) shown on the existing grading plan. Use of straw bales alone is not considered an effective method of sediment control. Prior to the start of construction, the Contractor shall submit the SWPPP to the Contracting Officer for review and acceptance. The SWPPP must address compliance with all State laws regarding historic preservation and endangered species with State Letters attached. Along with the SWPPP submittal, the Contractor shall provide a check made payable to the applicable agencies for all costs of the NPDES permit application. Once the SWPPP is approved by the Contracting Officer, the NOI will be prepared by the Corps of Engineers, utilizing information contained in the approved SWPPP. A Notice of Intent (NOI) will be forwarded to the State and

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applicable agencies by the Corps of Engineers. Commencement/start of construction (ground disturbing activity) by the Contractor CANNOT start prior to the NPDES Permit and the letter of compliance being received. A copy of both the SWPPP and NPDES Permit must be kept at the construction site. Any changes made to the plan must be documented and approved by the Contracting Officer. Note, the SWPPP is a part of the total Pollution Prevention Plan that the Contractor is responsible for preparing.

Contractor shall submit to the State and/or applicable agencies a Notice of Termination (NOT) when the construction activities for the project have been completed, and when the Contractor no longer has any storm water discharges associated with the construction activity, or when the Contractor is no longer the operator of the facilities. Elimination of all storm water discharges associated with the construction activities occurs when disturbed soils at the construction site have been finally stabilized and temporary erosion and sediment control measures have been removed. Final stabilization means that all soil-disturbing activities at the site have been completed, and that, where applicable, a uniform perennial vegetative cover with a density of 70 percent of the cover for unpaved areas and areas not covered by permanent structures has been established, or equivalent permanent stabilization measures (such as the use of riprap, gabions, or geotextiles) have been employed. The 70 percent density of cover for unpaved areas shall be considered the minimum acceptable cover for the completed project area. Other States and/or applicable agencies may have a more restrictive percentage of cover required and if so, the Contractor shall be required to adhere to those requirements for release or acceptance of the permit(s) in those project locations. The NOT submittal and any subsequent approval or correspondences received from the State or applicable agencies shall be submitted by the Contractor to the Contracting Officer's Representative.

3.2.2 Construction General Permit Requirements

3.2.2.1 General

Under the terms and conditions of the permit, install, inspect, maintain BMPs, prepare stormwater erosion and sediment control inspection reports, and submit SWPPP inspection reports. Maintain construction operations and management in compliance with the terms and conditions of the general permit for stormwater discharges from construction activities.

3.2.2.2 Inspection Reports

Submit "Inspection Reports" to the Contracting Officer in accordance with the State of California Construction General Permit.

3.2.2.3 Stormwater Pollution Prevention Plan Compliance Notebook

Create and maintain a three ring binder of documents that demonstrate compliance with the Construction General Permit. Include a copy of the permit Notice of Intent, proof of permit fee payment, SWPPP and SWPPP update amendments, inspection reports and related corrective action records, copies of correspondence with the State Permitting Agency, and a copy of the permit Notice of Termination in the binder. At project completion, the notebook becomes property of the Government. Provide the compliance notebook to the Contracting Officer.

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3.2.2.4 Stormwater Notice of Termination for Construction Activities

Submit a Notice of Termination to the Contracting Officer for approval once construction is complete and final stabilization has been achieved on all portions of the site for which the permittee is responsible. Once approved, submit the Notice of Termination to the appropriate state or federal agency. Prepare as-built topographic survey information required by the permitting agency for certification of the stormwater management system, and provide to the Contracting Officer.

3.2.3 Erosion and Sediment Control Measures

Provide erosion and sediment control measures in accordance with state and local laws and regulations. Preserve vegetation to the maximum extent practicable.

Erosion control inspection reports may be compiled as part of a stormwater pollution prevention plan inspection reports.

3.2.3.1 Erosion Control

Prevent erosion by mulching, compost blankets, geotextiles, temporary slope drains, and/or other appropriate best management practices as necessary. Stabilize slopes by chemical stabilization, sodding, seeding, or such combination of these methods necessary for effective erosion control. Use of hay bales is prohibited.

Provide seeding in accordance with UFGS Section 32 92 19 SEEDING.

3.2.3.2 Sediment Control Practices

Implement sediment control practices to divert flows from exposed soils, temporarily store flows, or otherwise limit runoff and the discharge of pollutants from exposed areas of the site. Implement sediment control practices prior to soil disturbance and prior to creating areas with concentrated flow, during the construction process to minimize erosion and sediment laden runoff. Include the following devices: Silt fence, temporary diversion dikes, storm drain inlet protection, and/or other best management practices. Location and details of installation and construction are indicated on the drawings in the SWPPP.

3.2.4 Work Area Limits

Mark the areas that need not be disturbed under this Contract prior to commencing construction activities. Mark or fence isolated areas within the general work area that are not to be disturbed. Protect monuments and markers before construction operations commence. Where construction operations are to be conducted during darkness, any markers must be visible in the dark. Personnel must be knowledgeable of the purpose for marking and protecting particular objects.

3.2.5 Contractor Facilities and Work Areas

Place field offices, staging areas, stockpile storage, and temporary buildings in areas designated on the drawings or as directed by the Contracting Officer. Move or relocate the Contractor facilities only when approved by the Government. Provide erosion and sediment controls for onsite borrow and spoil areas to prevent sediment from entering nearby waters. Control temporary excavation and embankments for plant or work

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areas to protect adjacent areas.

3.2.6 Municipal Separate Storm Sewer System (MS4) Management

Comply with the Installation's MS4 permit requirements.

3.3 SURFACE AND GROUNDWATER

3.3.1 Cofferdams, Diversions, and Dewatering

Construction operations for dewatering, removal of cofferdams, tailrace excavation, and tunnel closure must be constantly controlled to maintain compliance with existing state water quality standards and designated uses of the surface water body. Comply with the State of California water quality standards and anti-degradation provisions and the Clean Water Act Section 404. Do not discharge excavation ground water to the sanitary sewer, storm drains, or to surface waters without prior specific authorization in writing from the Installation Environmental Office. Discharge of hazardous substances will not be permitted under any circumstances. Use sediment control BMPs to prevent construction site runoff from directly entering any storm drain or surface waters.

If the construction dewatering is noted or suspected of being contaminated, it may only be released to the storm drain system if the discharge is specifically permitted. Obtain authorization for any contaminated groundwater release in advance from the Installation Environmental Officer and the federal or state authority, as applicable. Discharge of hazardous substances will not be permitted under any circumstances.

3.3.2 Waters of the United States

Do not enter, disturb, destroy, or allow discharge of contaminants into waters of the United States except as authorized herein. The protection of waters of the United States shown on the drawings in accordance with paragraph LICENSES AND PERMITS is the Contractor's responsibility. Authorization to enter specific waters of the United States identified does not relieve the Contractor from any obligation to protect other waters of the United States within, adjacent to, or in the vicinity of the construction site and associated boundaries.

3.4 PROTECTION OF CULTURAL RESOURCES

3.4.1 Archaeological Resources

If, during excavation or other construction activities, any previously unidentified or unanticipated historical, archaeological, and cultural resources are discovered or found, activities that may damage or alter such resources will be suspended. Resources covered by this paragraph include, but are not limited to: Any human skeletal remains or burials; artifacts; shell, midden, bone, charcoal, or other deposits; rock or coral alignments, pavings, wall, or other constructed features; and any indication of agricultural or other human activities. Upon such discovery or find, immediately notify the Contracting Officer so that the appropriate authorities may be notified and a determination made as to their significance and what, if any, special disposition of the finds should be made. Cease all activities that may result in impact to or the destruction of these resources. Secure the area and prevent employees or other persons from trespassing on, removing, or otherwise disturbing such

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resources. The Government retains ownership and control over archaeological resources.

3.4.2 Historical Resources

Existing historical resources within the work area are shown on the drawings. Protect these resources and be responsible for their preservation during the life of the Contract.

3.5 AIR RESOURCES

Equipment operation, activities, or processes will be in accordance with 40 CFR 64 and state air emission and performance laws and standards.

3.5.1 Preconstruction Air Permits

Notify the Air Program Manager, through the Contracting Officer, at least 6 months prior to bringing equipment, assembled or unassembled, onto the Installation, so that air permits can be secured. Necessary permitting time must be considered in regard to construction activities. Clean Air Act (CAA) permits must be obtained prior to bringing equipment, assembled or unassembled, onto the Installation.

Permits will be provided by the Government. Confirm that these permits have been obtained.

3.5.2 Oil or Dual-fuel Boilers and Furnaces

Provide product data and details for new, replacement, or relocated fuel fired boilers, heaters, or furnaces to the Installation Environmental Office (Air Program Manager) through the Contracting Officer. Data to be reported include: Equipment purpose (water heater, building heat, process), manufacturer, model number, serial number, fuel type (oil type, gas type) size (MMBTU heat input). Provide in accordance with paragraph PRECONSTRUCTION AIR PERMITS.

3.5.3 Burning

Burning is prohibited on the Government premises.

3.5.4 Class I and II ODS Prohibition

Class I and II ODS are Government property and must be returned to the Government for appropriate management. Coordinate with the Installation Environmental Office to determine the appropriate location for turn in of all reclaimed refrigerant.

3.5.5 Accidental Venting of Refrigerant

Accidental venting of a refrigerant is a release and must be reported immediately to the Contracting Officer.

3.5.6 EPA Certification Requirements

Heating and air conditioning technicians must be certified through an EPA-approved program. Maintain copies of certifications at the employees' places of business; technicians must carry certification wallet cards, as provided by environmental law.

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3.5.7 Dust Control

Keep dust down at all times, including during nonworking periods. Sprinkle or treat, with dust suppressants, the soil at the site, haul roads, and other areas disturbed by operations. Dry power brooming will not be permitted. Instead, use vacuuming, wet mopping, wet sweeping, or wet power brooming. Air blowing will be permitted only for cleaning nonparticulate debris such as steel reinforcing bars. Only wet cutting will be permitted for cutting concrete blocks, concrete, and bituminous concrete. Do not unnecessarily shake bags of cement, concrete mortar, or plaster.

3.5.7.1 Particulates

Dust particles, aerosols and gaseous by-products from construction activities, and processing and preparation of materials (such as from asphaltic batch plants) must be controlled at all times, including weekends, holidays, and hours when work is not in progress. Maintain excavations, stockpiles, haul roads, permanent and temporary access roads, plant sites, spoil areas, borrow areas, and other work areas within or outside the project boundaries free from particulates that would exceed 40 CFR 50, state, and local air pollution standards or that would cause a hazard or a nuisance. Sprinkling, chemical treatment of an approved type, baghouse, scrubbers, electrostatic precipitators, or other methods will be permitted to control particulates in the work area. Sprinkling, to be efficient, must be repeated to keep the disturbed area damp. Provide sufficient, competent equipment available to accomplish these tasks. Perform particulate control as the work proceeds and whenever a particulate nuisance or hazard occurs. Comply with state and local visibility regulations.

3.5.7.2 Abrasive Blasting

Blasting operations cannot be performed without prior approval of the Installation Air Program Manager. The use of silica sand is prohibited in sandblasting.

Provide tarpaulin drop cloths and windscreens to enclose abrasive blasting operations to confine and collect dust, abrasive agent, paint chips, and other debris. Perform work involving removal of hazardous material in accordance with 29 CFR 1910.

3.5.8 Odors

Control odors from construction activities. The odors must be in compliance with state regulations and local ordinances and may not constitute a health hazard.

3.6 WASTE MINIMIZATION

Minimize the use of hazardous materials and the generation of waste. Include procedures for pollution prevention/ hazardous waste minimization in the Hazardous Waste Management Section of the EPP. Obtain a copy of the installation's Pollution Prevention/Hazardous Waste Minimization Plan for reference material when preparing this part of the EPP. If no written plan exists, obtain information by contacting the Contracting Officer. Describe the anticipated types of the hazardous materials to be used in the construction when requesting information.

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3.6.1 Salvage, Reuse and Recycle

Identify anticipated materials and waste for salvage, reuse, and recycling. Describe actions to promote material reuse, resale or recycling. To the extent practicable, all scrap metal must be sent for reuse or recycling and will not be disposed of in a landfill.

Include the name, physical address, and telephone number of the hauler, if transported by a franchised solid waste hauler. Include the destination and, unless exempted, provide a copy of the state or local permit (cover) or license for recycling.

3.6.2 Nonhazardous Solid Waste Diversion Report

Maintain an inventory of nonhazardous solid waste diversion and disposal of construction and demolition debris. Submit a report to the Contracting Officer through the Contracting Officer on the first working day after each fiscal year quarter, starting the first quarter that nonhazardous solid waste has been generated. Include the following in the report:

Construction and Demolition (C&D) Debris Disposed	cubic yards as appropriate
C&D Debris Recycled	cubic yards as appropriate
Total C&D Debris Generated	cubic yards as appropriate
Waste Sent to Waste-To-Energy Incineration Plant (This amount should not be included in the recycled amount)	cubic yards as appropriate

3.7 WASTE MANAGEMENT AND DISPOSAL

3.7.1 Waste Determination Documentation

Complete a Waste Determination form (provided at the pre-construction conference) for Contractor-derived wastes to be generated. All potentially hazardous solid waste streams that are not subject to a specific exclusion or exemption from the hazardous waste regulations (e.g., scrap metal, domestic sewage) or subject to special rules, (lead-acid batteries and precious metals) must be characterized in accordance with the requirements of 40 CFR 261 or corresponding applicable state or local regulations. Base waste determination on user knowledge of the processes and materials used, and analytical data when necessary. Consult with the Installation environmental staff for guidance on specific requirements. Attach support documentation to the Waste Determination form. As a minimum, provide a Waste Determination form for the following waste (this listing is not inclusive): Oil- and latex-based painting and caulking products, solvents, adhesives, aerosols, petroleum products, and containers of the original materials.

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3.7.1.1 Sampling and Analysis of Waste

3.7.1.1.1 Waste Sampling

Sample waste in accordance with EPA SW-846. Clearly mark each sampled drum or container with the Contractor's identification number, and cross reference to the chemical analysis performed.

3.7.1.1.2 Laboratory Analysis

Follow the analytical procedure and methods in accordance with the 40 CFR 261. Provide analytical results and reports performed to the Contracting Officer.

3.7.1.1.3 Analysis Type

Identify hazardous waste by analyzing for the following characteristics: Ignitability, corrosivity, reactivity, and/or toxicity based on TCLP results, as appropriate.

3.7.2 Solid Waste Management

3.7.2.1 Solid Waste Management Report

Provide copies of the waste handling facilities' weight tickets, receipts, bills of sale, and other sales documentation. In lieu of sales documentation, a statement indicating the disposal location for the solid waste that is signed by an employee authorized to legally obligate or bind the firm may be submitted. The sales documentation Contractor certification, as applicable, must include the receiver's tax identification number and business, EPA or state registration number, along with the receiver's delivery and business addresses and telephone numbers. For each solid waste retained for the Contractor's own use, submit the information previously described in this paragraph on the solid waste disposal report. Prices paid or received do not have to be reported to the Contracting Officer unless required by other provisions or specifications of this Contract or public law.

3.7.2.2 Control and Management of Solid Wastes

Pick up solid wastes, and place in covered containers that are regularly emptied. Do not prepare or cook food on the project site. Prevent contamination of the site or other areas when handling and disposing of wastes. At project completion, leave the areas clean. Employ segregation measures so that no hazardous or toxic waste will become co-mingled with non-hazardous solid waste. Transport solid waste off Government property and dispose of it in compliance with 40 CFR 260, state, and local requirements for solid waste disposal. A Subtitle D RCRA permitted landfill is the minimum acceptable offsite solid waste disposal option. Verify that the selected transporters and disposal facilities have the necessary permits and licenses to operate. Segregate and separate treated wood components disposed at a lined landfill approved to accept this waste in accordance with local and state regulations. Solid waste disposal offsite must comply with most stringent local, state, and federal requirements, including 40 CFR 241, 40 CFR 243, and 40 CFR 258.

Manage hazardous material used in construction, including but not limited to, aerosol cans, waste paint, cleaning solvents, contaminated brushes, and used rags, in accordance with 49 CFR 173.

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3.7.3 Chemicals and Chemical Wastes

Dispense chemicals ensuring no spillage to the ground or water. Perform and document periodic inspections of dispensing areas to identify leakage and initiate corrective action. This documentation will be periodically reviewed by the Government. Collect chemical waste in corrosion resistant, compatible containers. Collection drums must be monitored and removed to a staging or storage area when contents are within 150 mm(6 inches) of the top. Wastes will be classified, managed, stored, and disposed of in accordance with Federal, State, and local laws and regulations.

3.7.4 Control and Management of Hazardous Waste

Do not dispose of hazardous waste on Government property. Do not discharge any waste to a sanitary sewer, storm drain, or to surface waters or conduct waste treatment or disposal on Government property without written approval of the Contracting Officer.

3.7.4.1 Hazardous Waste/Debris Management

Identify construction activities that will generate hazardous waste or debris. Provide a documented waste determination for resultant waste streams. Identify, label, handle, store, and dispose of hazardous waste or debris in accordance with federal, state, and local regulations, including 40 CFR 261, 40 CFR 262, 40 CFR 263, 40 CFR 264, 40 CFR 265, 40 CFR 266, and 40 CFR 268.

Manage hazardous waste in accordance with the approved Hazardous Waste Management Section of the EPP. Store hazardous wastes in approved containers in accordance with 49 CFR 173 and 49 CFR 178. Hazardous waste generated within the confines of Government facilities is identified as being generated by the Government. Prior to removal of any hazardous waste from Government property, hazardous waste manifests must be signed by personnel from the Installation Environmental Office. Do not bring hazardous waste onto Government property. Provide the Contracting Officer with a copy of waste determination documentation for any solid waste streams that have any potential to be hazardous waste or contain any chemical constituents listed in 40 CFR 372-SUBPART D.

3.7.4.2 Waste Storage/Satellite Accumulation/90 Day Storage Areas

Accumulate hazardous waste at satellite accumulation points and in compliance with 40 CFR 262.34 and applicable state or local regulations. Individual waste streams will be limited to 55 gallons of accumulation (or 1 quart for acutely hazardous wastes). If the Contractor expects to generate hazardous waste at a rate and quantity that makes satellite accumulation impractical, the Contractor may request a temporary 90 day accumulation point be established. Submit a request in writing to the Contracting Officer and provide the following information (Attach Site Plan to the Request):

Contract Number	
Contractor	

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Contract Number	
Haz/Waste or Regulated Waste POC	
Phone Number	
Type of Waste	
Source of Waste	
Emergency POC	
Phone Number	
Location of the Site	

Attach a Waste Determination form for the expected waste streams. Allow ten (10) working days for processing this request. Additional compliance requirements (e.g., training and contingency planning) that may be required are the responsibility of the Contractor. Barricade the designated area where waste is being stored and post a sign identifying as follows:

"DANGER - UNAUTHORIZED PERSONNEL KEEP OUT"

3.7.4.3 Hazardous Waste Disposal

3.7.4.3.1 Responsibilities for Contractor's Disposal

Provide hazardous waste manifest to the Installations Environmental Office for review, approval, and signature prior to shipping waste off Government property.

3.7.4.3.1.1 Services

Provide service necessary for the final treatment or disposal of the hazardous material or waste in accordance with 40 CFR 260, local, and state, laws and regulations, and the terms and conditions of the Contract within sixty (60) days after the materials have been generated. These services include necessary personnel, labor, transportation, packaging, detailed analysis (if required for disposal or transportation, include manifesting or complete waste profile sheets, equipment, and compile documentation).

3.7.4.3.1.2 Samples

Obtain a representative sample of the material generated for each job done to provide waste stream determination.

3.7.4.3.1.3 Analysis

Analyze each sample taken and provide analytical results to the Contracting Officer. See paragraph WASTE DETERMINATION DOCUMENTATION.

3.7.4.3.1.4 Labeling

Determine the Department of Transportation's (DOT's) proper shipping names

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for waste (each container requiring disposal) and demonstrate to the Contracting Officer how this determination is developed and supported by the sampling and analysis requirements contained herein. Label all containers of hazardous waste with the words "Hazardous Waste" or other words to describe the contents of the container in accordance with 40 CFR 262.31 and applicable state or local regulations.

3.7.4.3.2 Contractor Disposal Turn-In Requirements

Hazardous waste generated must be disposed of in accordance with the following conditions to meet installation requirements:

- a. Drums must be compatible with waste contents and drums must meet DOT requirements for 49 CFR 173 for transportation of materials.
- b. Band drums to wooden pallets.
- c. No more than three 55 gallon drums or two 85 gallon over packs are to be banded to a pallet.
- d. Band using 1-1/4 inch minimum band on upper third of drum.
- e. Provide label in accordance with 49 CFR 172.101.
- f. Leave 3 to 5 inches of empty space above volume of material.

3.7.4.4 Universal Waste Management

Manage the following categories of universal waste in accordance with federal, state, and local requirements and installation instructions:

- a. Batteries as described in 40 CFR 273.2.
- b. Lamps as described in 40 CFR 273.5.
- c. Mercury-containing equipment as described in 40 CFR 273.4.

Mercury is prohibited in the construction of this facility, unless specified otherwise, and with the exception of mercury vapor lamps and fluorescent lamps. Dumping of mercury-containing materials and devices such as mercury vapor lamps, fluorescent lamps, and mercury switches, in rubbish containers is prohibited. Remove without breaking, pack to prevent breakage, and transport out of the activity in an unbroken condition for disposal as directed.

3.7.4.5 Electronics End-of-Life Management

Recycle or dispose of electronics waste, including, but not limited to, used electronic devices such computers, monitors, hard-copy devices, televisions, mobile devices, in accordance with 40 CFR 260-262, state, and local requirements, and installation instructions.

3.7.4.6 Disposal Documentation for Hazardous and Regulated Waste

Contact the Contracting Officer for the facility RCRA identification number that is to be used on each manifest.

Submit a copy of the applicable EPA and or state permit(s), manifest(s), or license(s) for transportation, treatment, storage, and disposal of

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hazardous and regulated waste by permitted facilities. Hazardous or toxic waste manifests must be reviewed, signed, and approved by the Contracting Officer before the Contractor may ship waste. To obtain specific disposal instructions, coordinate with the Installation Environmental Office.

3.7.5 Releases/Spills of Oil and Hazardous Substances

3.7.5.1 Response and Notifications

Exercise due diligence to prevent, contain, and respond to spills of hazardous material, hazardous substances, hazardous waste, sewage, regulated gas, petroleum, lubrication oil, and other substances regulated in accordance with 40 CFR 300. Maintain spill cleanup equipment and materials at the work site. In the event of a spill, take prompt, effective action to stop, contain, curtail, or otherwise limit the amount, duration, and severity of the spill/release. In the event of any releases of oil and hazardous substances, chemicals, or gases; immediately (within 15 minutes) notify the Installation Fire Department, the Installation Command Duty Officer, the Installation Environmental Office, the Contracting Officer, and the state or local authority.

Submit verbal and written notifications as required by the federal (40 CFR 300.125 and 40 CFR 355), state, local regulations and instructions. Provide copies of the written notification and documentation that a verbal notification was made within twenty (20) days. Spill response must be in accordance with 40 CFR 300 and applicable state and local regulations. Contain and clean up these spills without cost to the Government.

3.7.5.2 Clean Up

Clean up hazardous and non-hazardous waste spills. Reimburse the Government for costs incurred including sample analysis materials, clothing, equipment, and labor if the Government will initiate its own spill cleanup procedures, for Contractor-responsible spills, when: Spill cleanup procedures have not begun within one hour of spill discovery/occurrence; or, in the Government's judgment, spill cleanup is inadequate and the spill remains a threat to human health or the environment.

Amendment 0004*****

3.7.6 Mercury Materials

See and review Attachment (after Section 02 83 00), Summary Report: Limited Non-Destructive Hazardous Material Survery March Air Force Reserve Base KC-46 Program SIM Building Renovations, prepared by SCA/LA Environmental, Inc., dated December 9, 2022. Immediately report to the Environmental Office and the Contracting Officer instances of breakage or mercury spillage. Clean mercury spill area to the satisfaction of the Contracting Officer.

Do not recycle a mercury spill cleanup; manage it as a hazardous waste for disposal.

*******Amendment 0004**

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3.7.7 Wastewater

3.7.7.1 Disposal of wastewater must be as specified below.

3.7.7.1.1 Treatment

Do not allow wastewater from construction activities, such as onsite material processing, concrete curing, foundation and concrete clean-up, water used in concrete trucks, and forms to enter water ways or to be discharged prior to being treated to remove pollutants. Dispose of the construction-related wastewater off-Government property in accordance with 40 CFR 403, state, regional, and local laws and regulations.

3.7.7.1.2 Surface Discharge

For discharge of groundwater, obtain a state or federal permit specific for pumping and discharging groundwater prior to surface discharging.

3.7.7.1.3 Land Application

Water generated from the flushing of lines after hydrostatic testing must be discharged into the sanitary sewer with prior approval and notification to the Wastewater Treatment Plant's Operator.

3.8 HAZARDOUS MATERIAL MANAGEMENT

Include hazardous material control procedures in the Safety Plan, in accordance with LRL Section 01 35 26.00 06 GOVERNMENTAL SAFETY REQUIREMENTS. Address procedures and proper handling of hazardous materials, including the appropriate transportation requirements. Do not bring hazardous material onto Government property that does not directly relate to requirements for the performance of this contract. Submit an SDS and estimated quantities to be used for each hazardous material to the Contracting Officer prior to bringing the material on the installation. Typical materials requiring SDS and quantity reporting include, but are not limited to, oil and latex based painting and caulking products, solvents, adhesives, aerosol, and petroleum products. Use hazardous materials in a manner that minimizes the amount of hazardous waste generated. Containers of hazardous materials must have National Fire Protection Association labels or their equivalent. Certify that hazardous materials removed from the site are hazardous materials and do not meet the definition of hazardous waste, in accordance with 40 CFR 261.

3.9 PREVIOUSLY USED EQUIPMENT

Clean previously used construction equipment prior to bringing it onto the project site. Equipment must be free from soil residuals, egg deposits from plant pests, noxious weeds, and plant seeds. Consult with the U.S. Department of Agriculture jurisdictional office for additional cleaning requirements.

3.10 CONTROL AND MANAGEMENT OF ASBESTOS-CONTAINING MATERIAL (ACM)

Manage and dispose of asbestos containing waste in accordance with 40 CFR 61 and UFGS Section 02 82 00 ASBESTOS REMEDIATION. Manifest asbestos containing waste and provide the manifest to the Contracting Officer. Notifications to the state and Installation Air Program Manager are required before starting any asbestos work.

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3.11 CONTROL AND MANAGEMENT OF LEAD-BASED PAINT (LBP)

Manage and dispose of lead-contaminated waste in accordance with 40 CFR 745 and UFGS Section 02 83 00 LEAD REMEDIATION. Manifest any lead-contaminated waste and provide the manifest to the Contracting Officer. For the purposes of this contract, all painted surfaces that have not been tested are assumed to contain lead and as such must be handled in accordance with 29 CFR 1926.62.

Amendment 0004*****

3.12 CONTROL AND MANAGEMENT OF POLYCHLORINATED BIPHENYLS (PCBS)

See and review Attachment (after Section 02 83 00), Summary Report: Limited Non-Destructive Hazardous Material Survey March Air Force Reserve Base KC-46 Program SIM Building Renovations, prepared by SCA/LA Environmental, Inc., dated December 9, 2022. Manage and dispose of PCB-contaminated waste in accordance with 40 CFR 761.

*******Amendment 0004**

3.13 CONTROL AND MANAGEMENT OF LIGHTING BALLAST AND LAMPS CONTAINING PCBS

Manage and dispose of contaminated waste in accordance with 40 CFR 761.

3.14 MILITARY MUNITIONS

In the event military munitions, as defined in 40 CFR 260, are discovered or uncovered, immediately stop work in that area and immediately inform the Contracting Officer.

- a. Recognize- recognize the hazard and do not touch, disturb, or move the item as it could detonate with movement of ground vibrations.
- b. Retreat - stop work, mark the general location, and have everyone retreat from the area.
- c. Report - report the situation immediately to the appropriate local emergency authority) ,i.e., call 911 or the equivalent on DOD Installations), providing as much information as possible about the items encountered. USACE Safety Office and installation staff as appropriate.

3.15 PETROLEUM, OIL, LUBRICANT (POL) STORAGE AND FUELING

POL products include flammable or combustible liquids, such as gasoline, diesel, lubricating oil, used engine oil, hydraulic oil, mineral oil, and cooking oil. Store POL products and fuel equipment and motor vehicles in a manner that affords the maximum protection against spills into the environment. Manage and store POL products in accordance with EPA 40 CFR 112, and other federal, state, regional, and local laws and regulations. Use secondary containments, dikes, curbs, and other barriers, to prevent POL products from spilling and entering the ground, storm or sewer drains, stormwater ditches or canals, or navigable waters of the United States. Describe in the EPP (see paragraph ENVIRONMENTAL PROTECTION PLAN) how POL tanks and containers must be stored, managed, and inspected and what protections must be provided. Storage of fuel on the project site must be in accordance with EPA, state, and local laws and regulations and paragraph OIL STORAGE INCLUDING FUEL TANKS.

3.15.1 Used Oil Management

Manage used oil generated on site in accordance with 40 CFR 279.

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Determine if any used oil generated while onsite exhibits a characteristic of hazardous waste. Used oil containing 1,000 parts per million of solvents is considered a hazardous waste and disposed of at the Contractor's expense. Used oil mixed with a hazardous waste is also considered a hazardous waste. Dispose in accordance with paragraph HAZARDOUS WASTE DISPOSAL.

3.15.2 Oil Storage Including Fuel Tanks

Provide secondary containment and overfill protection for oil storage tanks. A berm used to provide secondary containment must be of sufficient size and strength to contain the contents of the tanks plus 5 inches freeboard for precipitation. Construct the berm to be impervious to oil for 72 hours that no discharge will permeate, drain, infiltrate, or otherwise escape before cleanup occurs. Use drip pans during oil transfer operations; adequate absorbent material must be onsite to clean up any spills and prevent releases to the environment. Cover tanks and drip pans during inclement weather. Provide procedures and equipment to prevent overfilling of tanks. If tanks and containers with an aggregate aboveground capacity greater than 1320 gallons will be used onsite (only containers with a capacity of 55 gallons or greater are counted), provide and implement a SPCC plan meeting the requirements of 40 CFR 112. Do not bring underground storage tanks to the installation for Contractor use during a project. Submit the SPCC plan to the Contracting Officer for approval.

Monitor and remove any rainwater that accumulates in open containment dikes or berms. Inspect the accumulated rainwater prior to draining from a containment dike to the environment, to determine there is no oil sheen present.

3.16 INADVERTENT DISCOVERY OF PETROLEUM-CONTAMINATED SOIL OR HAZARDOUS WASTES

If petroleum-contaminated soil, or suspected hazardous waste is found during construction that was not identified in the Contract documents, immediately notify the Contracting Officer. Do not disturb this material until authorized by the Contracting Officer.

3.17 PEST MANAGEMENT

Not Used

3.18 CHLORDANE

Evaluate excess soils and concrete foundation debris generated during the demolition of housing units or other wooden structures for the presence of chlordane or other pesticides prior to reuse or final disposal.

3.19 SOUND INTRUSION

Make the maximum use of low-noise emission products, as certified by the EPA. Blasting or use of explosives are not permitted without written permission from the Contracting Officer, and then only during the designated times. Confine pile-driving operations to the period between 8 a.m. and 5 p.m., Monday through Friday, exclusive of holidays, unless otherwise specified.

Keep construction activities under surveillance and control to minimize

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environment damage by noise. Comply with the provisions of the State of California rules.

3.20 RADON MITIGATION SYSTEMS

Passive radon mitigation systems shall be incorporated into the building design of all new inhabited structures. The Contract shall specifically identify if any typically uninhabited structures require passive radon mitigation systems. The design shall include provisions to permit installation of exhaust fans, if necessary, after testing the building under occupied conditions. Criteria for radon mitigation in new construction is specified in EPA 625-R-96-016, (1994, Third Printing with Addenda)"Radon Prevention in Design and Construction of Schools and Other Large Buildings.

3.21 POST CONSTRUCTION CLEANUP

Clean up areas used for construction in accordance with FAR 52.236-12 - Cleaning Up. Unless otherwise instructed in writing by the Contracting Officer, remove traces of temporary construction facilities such as haul roads, work area, structures, foundations of temporary structures, stockpiles of excess or waste materials, and other vestiges of construction prior to final acceptance of the work. Grade parking area and similar temporarily used areas to conform with surrounding contours.

PART 4 ENVIRONMENTAL PERMITS AND COMMITMENTS

4.1 LIST OF PRECONSTRUCTION PERMITS

Obtaining and complying with all environmental permits and commitments required by Federal, State, regional, local, and Installation/Facility environmental laws and regulations are the Contractor's responsibility. Prior to beginning of construction, the Contractor shall, upon review of the project and this specification section, make a list of all permits and construction-related commitments/and requirements required for the duration of the construction phase to be attached to the Environmental Protection Plan, or other similar documentation if an Environmental Protection Plan is not required. The Contractor, in conjunction with the Designer of Record (DOR), shall prepare a List of Preconstruction Permits (LOPP) with construction-related commitments/and requirements. The LOPP shall include, but is not be limited to the following: Permit name, the address of the permitting agency, cost of submittal/Permit fee, and the name of the permittee. The LOPP should also include specifics of each permit such as the purpose/reason permit is needed, regulatory requirements, applicability to the project, schedule for obtaining permit, and other information such as authorized or permit restrictions. The LOPP should also list specific commitments (i.e., dust control measures, tree cutting restrictions, erosion control measures) that are not inherent to a specific permit or may apply to multiple permits, or are required for proper construction and compliance.

4.2 ENVIRONMENTAL REGULATIONS AND OTHER DOCUMENTS THAT MAY CONTAIN INFORMATION TO IDENTIFY PRECONSTRUCTION PERMITS AND CONSTRUCTION-RELATED COMMITMENTS

4.2.1 National Environmental Policy Act (NEPA)

The National Environmental Policy Act establishes policies and goals for the protection of the environment. The NEPA process includes systematic

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examination of possible and probable environmental consequences of implementing a Proposed Action. USACE projects should be in compliance with Army Regulation AR 200-2, Chapter 2 - National Environmental Policy Act and the Decision Process. ER 200-2-2 provides additional guidance on NEPA documentation. It is the responsibility of the Contractor to obtain and review copies of NEPA documentation related to the project prior to beginning of construction. This may include but is not limited to the Record of Environmental Consideration (REC), an Environmental Assessment (EA), a Finding of No Significant Impact (FONSI), an Environmental Impact Statement (EIS), a Life Cycle Environmental Document (LCED), a Record of Decision (ROD), and a Categorical Exclusion (CX). These documents may also contain commitments, such Environmental Impacts and Minimization/Avoidance Measures for the Proposed Action that must be followed and incorporated into the Environmental Protection Plan or other appropriate documentation, and included in the LOPP.

4.2.2 Endangered Species Act

Construction should be completed in compliance with the Endangered Species act of 1973 and AR 200-3, Chapter 11 - Endangered/Threatened Species Guidance. The Endangered Species Act provides a program for the conservation of threatened and endangered plants and animals and the habitats in which they reside. In the case that a proposed construction action could be harmful to a threatened or endangered species or its habitat, the Contractor will be required to review and follow federal, state, regional, and local regulations pertaining to threatened and endangered species. For work taking place on a military installation, the Contractor will be required to obtain and review a copy of any Endangered Species Management Plans (ESMP) or other related commitments from the appropriate base personnel, or State Fish and Wildlife personnel relative to the Installation.

Projects that may affect threatened or endangered species will likely have had a Biological Evaluation and may also have a Biological Assessment completed for the action. The Biological Evaluation and Biological Assessment provides site-specific information regarding potential impacts to federally threatened or endangered species in compliance with Section 7 (a)(2) of the Endangered Species Act. If a Biological Evaluation or a Biological Assessment has been completed for the proposed action, the Contractor should obtain and review it and use it to help develop species specific protection measures to be included in the Environmental Protection Plan.

If a threatened or endangered species is encountered during construction, the Contractor should immediately stop construction in the area and contact the appropriate authorities. Even if endangered species are not located at a construction site, the facility ESMP may have avoidance measures required of any construction at the facility. The Contractor should thoroughly review and follow requirements of the ESMP.

4.2.3 National Historic Preservation Act

The National Historic Preservation Act is intended to protect the nations historic and cultural resources. Section 106 of the National Historic Preservation Act requires any Government agency with jurisdiction over an undertaking to take into account its effects on any district, site, building, structure, or object included on or eligible for inclusion on the National Register. Construction should be completed in compliance with the National Historic Preservation Act. It is the responsibility of

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the Contractor to obtain and review a copy of any pertinent Integrated Cultural Resources Management Plan from the appropriate authorities. If at any time during construction cultural resources are discovered, the Contractor will immediately stop any construction that may damage the newly discovered resource. It is the responsibility of the Contractor to review any additional State, regional, or local regulations and obtain necessary permits.

4.2.4 Clean Water Act

The Clean Water Act is the primary federal law of the United States governing water pollution. The purpose of the Clean Water Act is to eliminate release of high amounts of pollution into waters of the United States.

4.2.4.1 National Pollutant Discharge Elimination System (NPDES)

Section 402 of the Clean Water Act authorizes the National Pollutant Discharge Elimination System (NPDES) permit program. Compliance with NPDES will be required on any construction project with at least one acre of land disturbance. The Government has already acquired the NPDES permit for this construction activity. It is the responsibility of the Contractor to determine if a general permit has been issued covering construction activities. Additionally, the Contractor is to follow the NPDES and Notice of Intent (NOI) requirements throughout the construction duration. In compliance with NPDES, a Storm Water Pollution Prevention Plan (SWPPP) or a Soil Erosion and Sediment Control Plan must be in place and followed for the duration of construction. After construction is finished, a Notice of Termination must be submitted within thirty (30) days after all land disturbing activity is complete.

4.2.4.2 Section 404 Permit for Dredge/Fill Operations

Construction resulting in the discharge of fill or dredge material into wetlands or waters of the United States must be authorized by a permit pursuant to section 404 of the Clean Water Act. It is the responsibility of the Contractor to obtain and review the Federal, State, or Regional general permits pertaining to construction, or to obtain an individual permit if construction activity is not covered by a general permit.

4.2.4.3 Waste Water Discharge Permits

NPDES authorizes permitting requirements for waste water discharge. Any non-exempt facilities that will discharge waste water to the local sanitary sewer system (ex. on-site concrete plant, on-site sewage treatment plant, water treatment plant, equipment wash rack) will require permits in accordance with any Federal, State, regional, and local regulations.

4.2.5 Resource Conservation and Recovery Act

The Resource Conservation and Recovery Act (RCRA) is the principal Federal law of the United States covering the disposal of solid and hazardous waste. The RCRA also provides regulation on underground storage tanks (USTs). The objectives of the RCRA are to protect human health and the environment from potential hazards of waste disposal, to conserve energy and natural resources, to reduce waste generation, and to ensure wastes are managed in an environmentally sound way. Construction should be completed in compliance with RCRA Part C (hazardous waste) and RCRA Part D

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non-hazardous solid wastes).

4.2.5.1 Solid Waste Disposal

The Contractor is responsible for including a Solid Waste Minimization Plan and a Contaminant Prevention Plan as part of the Environmental Protection Plan. These plans are to ensure the proper handling of solid waste generated during construction. In general, the Contractor is required to divert a minimum of 60 percent of solid waste generated during construction from landfills, but this amount may vary between Installations. Refer to the UFGS SECTION 01 74 19 CONSTRUCTION AND DEMOLITION WASTE MANAGEMENT for more information regarding solid waste disposal and requirements. It is the responsibility of the Contractor to obtain a Solid Waste Permit or a Beneficial Reuse Permit from the State and local authorities.

4.2.5.2 Hazardous Waste Disposal

Hazardous wastes are as defined in 40 CFR 261. The Contractor is responsible for developing a Spill Control Plan to be included in the Environmental Protection Plan. The Contractor may be required to obtain a Hazardous Waste Generator ID# from the EPA, and additional permitting requirements may have to be met in accordance with State, regional, and local regulations. If during construction any asbestos, lead based paint, Polychlorinated biphenyl, or any other material or substance hazardous to human health is encountered, that portion of work should be stopped immediately, the Contracting Officer should be contacted, and all necessary precautions to avoid human harm should be taken.

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4.2.5.2.1 ACM

The Contractor will need to remove ACM in accordance with SECTION 02 82 00 prior to start of demolition work and in accordance with NESHAPs regulation prior to any renovation/demolition activities. **See and review Attachment (after Section 02 83 00), Summary Report: Limited Non-Destructive Hazardous Material Survery March Air Force Reserve Base KC-46 Program SIM Building Renovations, prepared by SCA/LA Environmental, Inc., dated December 9, 2022.** All asbestos containing materials removal, handling, transport and disposal will be handled as part of the contract. All activities involving asbestos will need to be performed in accordance the Construction Industry standard 29 CFR 1926.1101 and all applicable Federal, State and local regulations.

4.2.5.2.2 Lead Based Paint

See and review Attachment (after Section 02 83 00), Summary Report: Limited Non-Destructive Hazardous Material Survery March Air Force Reserve Base KC-46 Program SIM Building Renovations, prepared by SCA/LA Environmental, Inc., dated December 9, 2022. All painted surfaces are assumed to contain lead and must be handled in accordance with the OSHA Lead in Construction Standard 29 CFR 1926.62 and Section 02 83 00 LEAD REMEDIATION.

*******Amendment 0004**

4.2.6 Safe Drinking Water Act (SDWA)

The purpose of the Safe Drinking Water Act (SDWA) is to protect public drinking water and its sources: Rivers, lakes, reservoirs, springs, and ground water wells. Construction should be completed in compliance with requirements of the Safe Drinking Water Act, as stated by AR 200-1,

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Chapter 4 - Environmental Asset Management.

4.2.6.1 Water Distribution

Any construction involving the installation of a water treatment system, installation of water distribution lines, or the installation of a drinking water well will require permitting, usually issued by the State government and as coordinated with local and State regulatory authorities.

4.2.6.2 Groundwater Protection

The Contractor will be required to develop and adhere to a groundwater protection plan for any construction that could result in groundwater contamination. The groundwater protection plan should be included as part of the Environmental Protection Plan. The Contractor should review Federal, State, regional, and local regulations concerning groundwater protection and obtain permits required by regulations. If the Contractor is required to use underground injection to dispose of fluids in the ground, and underground injection control permit will be required, which will likely be issued by the State. The Contractor should coordinate with State authorities to ensure that proper permitting is obtained and applicable regulations are followed.

4.2.7 Occupational Safety and Health Act

The Occupational Safety and Health Act is the primary federal law governing occupational health and safety in the workplace. Its main goal is to ensure that employers provide employees with an environment free from recognized hazards, such as exposure to toxic chemicals, excessive noise levels, mechanical dangers, heat or cold stress, or unsanitary conditions.

Many states have their own Occupational Safety and Health requirements which are at least as strict as the Federal requirements. The Contractor should adhere to 29 CFR 1926 which regulates construction activities as well as follow safety and health requirements specified in EM 385-1-1.

4.2.7.1 Employee Right to Know

Employee Right to Know is an Occupational Safety and Health Administration (OSHA) regulation giving employees the right to know information about the hazards they may be exposed to in the workplace, or on a construction site. The Contractor should be in compliance with OSHA standards during the duration of construction. The Contractor should make available material safety data sheets (MSDS) on any hazardous material or product that may be present on the construction site. These sheets should include such information such as the specific product, hazards and safety risks related to the product, storage and disposal requirements, protective equipment requirements, and emergency response procedures.

4.2.7.2 Occupational Exposure Limits (OELs)

The United States Army Corps of Engineers (USACE) uses enforceable occupational exposure limits (OELs) to protect employees against potential health effects of exposure to hazardous substances. The OELs are regulatory limits on the amount (concentration) of a substance in the air, or on the skin. It is the responsibility of the Contractor to ensure that the construction site remains within the OELs set by USACE. EM 385-1-1 defines the OELs as the most stringent standard published between the most

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recently published American Conference of Governmental Industrial Hygienists (ACGIH) guideline "Threshold Limit Values and Biological Exposure Indices," and the Occupational Safety and Health Administration (OSHA) Permissible Exposure Limits (PELs) as defined by 29 CFR 1910, 29 CFR 1915, and 29 CFR 1926.

4.2.7.3 Confined Spaces

A confined space has limited or restricted means for entry or exit, and is not designed for continuous employee occupancy. This includes areas such as underground vaults, tanks, storage bins, manholes, pits, silos, process vessels, and pipelines. A confined space may require a special permit for work to take place. A permit-required confined space as described by OSHA is a confined space with any of the following characteristics: Contains or has the potential to contain a hazardous atmosphere; contains a material that has the potential to engulf an entrant; has walls that converge inward or floors that slope downward and taper into a smaller area which could trap or asphyxiate an entrant; or contains any other recognized safety or health hazard, such as unguarded machinery, exposed live wires, or heat stressors. The Contractor should follow Federal, State, regional and local regulations and obtain necessary permits in regards to work in confined spaces.

4.2.8 Coastal Zone Management Act

The Coastal Zone Management Act of 1972 establishes a voluntary national program to encourage coastal states to implement coastal zone management plans. The Contractor should be aware that the mentioned coastal zone management plans may exist in any coastal state, including the Great Lakes. It is the responsibility of the Contractor to obtain the coastal zone management plan from the State government where the project is located, and to follow all regulations set forth by the plan.

4.2.9 Burning Permits

No burning is allowed on Government property.

4.2.10 Floodplain Construction Permits (applicable to both 401 and 404 permits)

In accordance with CFR 44, Part 60.3 - Flood Plain Management Criteria for Flood-prone Areas, communities are required to issue permits for proposed construction and development activities within the community. This is to ensure the proper management of flood prone areas. It is the responsibility of the Contractor to obtain necessary Federal, State, regional, and local permits related to floodplain construction and to follow all related regulations.

4.2.11 Air Quality Permits

The Contractor is responsible for developing a dirt and dust control plan prior to construction. It is the responsibility of the Contractor to obtain any State, Regional, and Local permits relating to air quality during construction. A permit may be required if there is any issue with emissions release during construction, detectable levels of radon, or dirt and dust control issues. Also, the Contractor may be required to obtain a permit for the use of any equipment with combustible sources. Appropriate radon mitigation measures should be used during construction in accordance with 29 CFR 1910.

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4.2.12 Excavation Permit

In addition to the Notice of Intent (NOI), an excavation permit from State, regional, local governments, and/or the facility/Installation may be required before excavation can commence on the project site. It is the responsibility of the Contractor to review State, regional, and local regulations pertaining to excavation and to obtain any necessary permits prior to initiation of construction.

4.2.13 Vegetation and Revegetation Permit

Any construction activity that involves vegetation removal or re-vegetation may require a vegetation permit from State, regional, and local authorities. It is the responsibility to review State, regional, and local regulations pertaining to vegetation prior to construction and to follow through with responsibilities stated in the regulations.

Vegetation removal or vegetation plans may be restricted or limited by the presence of threatened or endangered species or by a pest management requirements. If the project could affect threatened and endangered species or is covered by a pest management plan, the Contractor may have special vegetation requirements to follow. These requirements would be included in the appropriate facility management plans or by Fish and Wildlife Service regulations.

4.2.14 Water Withdrawal Permits

Withdrawal of water from any surface, spring, or groundwater source may require a Water Withdrawal Permit. It is the responsibility of the Contractor to review any relevant State, regional, and local regulations and to obtain any necessary permits for water withdrawal activities prior to initiation of construction.

4.2.15 Zoning Permits

It is the responsibility of the Contractor to review any State, regional, and local regulations pertaining to zoning and to obtain necessary permits prior to initiation of construction.

4.2.16 Noise Permits

Some local and state jurisdictions may enforce noise ordinances. Construction activity may be in violation of these ordinances and could require permit to exceed the ordinance levels. It is the responsibility of the Contractor to review local regulations regarding noise pollution and to obtain necessary permits prior to the initiation of construction.

4.2.17 Pesticide Permits

Some construction projects may require the use of pesticides for pest control. If a pesticide is to be used on a construction site, the Contractor is responsible for following procedures in the area Integrated Pest management plan (IPPM). Pest control measures must be in compliance with AR200-1, Chapter 5 - Pest Management. Obtainment of Federal, State, regional, or local permits required for the use of a pesticide is the responsibility of the Contractor.

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4.2.18 Munitions and Explosives of Concern (MEC)/Unexploded Ordnance (UXO)

In the event military munitions, as defined in 40 CFR 260, are discovered or uncovered, the Contractor will immediately stop work in that area and immediately inform the Contracting Officer. Any construction on a site that has the possibility of the existence of MEC or UXO must be coordinated through the Center of Expertise.

4.2.19 Driveway / Curb Cut Permit

The construction of a driveway connecting to a public road may require permitting. The Contractor should review all State, regional, and local regulations pertaining to driveway construction and curb cutting and obtain any necessary permits. In addition to driveway and curb cut Permits, a right-of-way Permit to be obtained by the Contractor may also be required if a sidewalk will be temporarily obstructed during the construction of a driveway entrance.

4.2.20 Demolition/Renovation Permit

Construction projects that require the demolition or renovation of structures may require the Contractor to obtain permitting. The National Emission Standards for Hazardous Air Pollutants (NESHAP) are stationary source standards for hazardous air pollutants. Hazardous air pollutants (HAPs) are those pollutants that are known or suspected to cause cancer or other serious health effects. Building demolition could release HAPs such as asbestos into the air if proper regulations are not followed. The presence of HAPs on a construction site will require the Contractor to develop appropriate plans for the removal of such pollutants prior to demolition, and may require additional permitting from State, regional, and local authorities.

Other considerations such as proper utility disconnection and safe building demolition are also considered and may require permits. If any demolition activity interferes with the public right-of-way, an obstruction permit will also need to be obtained from the appropriate authorities. It is the responsibility of the Contractor to follow all Federal, State, regional, and local regulations and obtain the appropriate permits dealing with building demolition and right-of-way obstruction.

4.2.21 Utility Permits

Any project that requires utility construction or connection will likely require a permit from local authorities. It is the responsibility of the Contractor to review all local regulations and obtain all permits and fees relating to utility construction and connections. Utility installations that will likely require permitting are electric, gas, drinking water, communication, and sanitary sewer utility installations. The Contractor is responsible for contacting the provider for each of the utilities and coordinate permitting and installation with the utility providers.

4.2.22 Aquatic Resource Alteration Permits (Not Applicable - Tennessee Permit)

Construction involving the temporary or permanent alteration of aquatic resources will require State, regional, or local permitting. The Contractor is responsible for reviewing State, regional and local laws as well as regulations and coordinating with appropriate authorities to determine if an aquatic resource alteration permit is necessary. Actions

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such as the temporary or permanent diversion of a stream, depositing of fill material into a stream, pond, lake, or wetland, and other similar activities will likely trigger the need for a permit.

4.2.23 Construction Permit

New construction may require a construction or building permit from State, regional, or local authorities prior to the beginning of construction. It is the responsibility of the Contractor to review State, regional and local laws and regulations and to obtain a construction permit if required.

4.2.24 Permit Variances

State, regional, and local authorities may allow modifications to be made in areas covered by existing permits. The permitting agency may be able to issue a permit variance for either a temporary or one-time exceedance of conditions specified in the existing permit. The Contractor should coordinate with permitting authorities if a variance will be necessary for the completion of the project.

-- End of Section --